

REFGUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ Marrakech Framework for Action | Institute for Lifelong Learning (unesco.org)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](#)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](https://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: SWEDEN

Organization or entity responsible for the preparation of the report: Ministry of Education and Research in cooperation with the Swedish National Commission for UNESCO.

Name of contact person: Emma Jansson

Email and telephone number of contact person: E-mail: emma.jansson@gov.se. Phone number: +46 8 405 10 00.

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☐ Yes ☒ No, a convention is not directly applicable in Sweden. A convention becomes part of Swedish law either through incorporation of the entire convention or by transformation (i.e. legislation in accordance with the convention being adopted in so far as norm harmonisation does not already exist.)

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

☒ Yes:

Have the provisions of the Convention been invoked?

☐ Yes ☒ No, although it has not been possible to make a complete overview of all Swedish case law.

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

National laws are invoked and are given effect by courts and certain administrative authorities. The Equality Ombudsman, (Diskrimineringsombudsmannen, DO) monitors compliance with the Discrimination Act (2008:567).

Below are some examples of judgements from national courts.

Compulsory school

Supreme Court (T 3151-23)

A pupil had had certain difficulties in his schooling, mainly regarding social interaction and concentration. Towards the end of the spring semester 2017, the situation had worsened. After the summer vacation, the school carried out an investigation regarding the pupil's needs for support. The investigation was completed in October 2017, and it concluded that the pupil needed so-called special support, which i.a. may involve placement in a special teaching group or an adapted course of study. However, the school did not take any measures to give the pupil special support. In March 2018, the school became aware that the pupil had been diagnosed with autism. A few weeks later, the pupil changed school. In a decision from the fall of 2018, the Swedish Schools Inspectorate criticized the school for having violated the School Act through the shortcomings in handling the pupil's need for special support.

The Supreme Court concludes in its decision that it should be required that a deviation from the requirements of the Education Act should have led to concrete consequences for the accessibility of the pupil with a disability in order to be a question of discrimination. The Supreme Court also makes statements on how the assessment of whether a person belongs to the group of persons with disabilities should be made and on the application of a provision on the burden of proof in the Discrimination Act.

In the current case, the school had concluded that the pupil needed special support but failed to analyze which support measures were needed, to design an action plan that contained such measures and to arrange special support for the pupil. The consequences of this were that for six months the pupil did not receive the kind of support that was needed to be able to function satisfactorily at school. The pupil's absence was therefore at a high level and the pupil missed large parts of his education during the period. According to the Supreme Court,

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

this constituted such concrete negative consequences of the deviations from the requirements of the Education Act that discrimination had taken place. The municipality is therefore ordered to pay discrimination compensation to the pupil.

[Diskriminering när skolelev inte fick tillräckligt stöd - Sveriges Domstolar](#)

Higher education

Supreme Court (NJA 2006 s 683)

A university reserved 10 % of the places to a university programme for applicants with both parents born outside the country, in order to increase ethnical and social diversity within the programme. The merits of the applicants admitted on this ground were inferior to the merits of other applicants that were not admitted, including individual A and B. The court found that the university did not have the right to invoke the exemption from the discrimination prohibition enshrined in the Act (2001:1286) on equal treatment of university students (lagen om likabehandling av studenter vid högskolan). A and B were found to be entitled to damages because of unlawful discrimination.

The Convention was not invoked in this case. The relevant act in this case was abolished when the Discrimination Act was enacted.

Svea Court of Appeal (RH 2009:90)

For applicants with identical merits a university applied a weighted draw in favour of the underrepresented sex. In a group of applicants the weighted draw led to only underrepresented male applicants being admitted. The court found that the university did not have the right to invoke the exemption from the discrimination prohibition enshrined in the Act (2001:1286) on equal treatment of university students (lagen om likabehandling av studenter vid högskolan). Female applicants were therefore found to be entitled to damages because of unlawful discrimination.

The Convention was not invoked in this case. The relevant act in this case was abolished when the Discrimination Act was enacted.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

*It further corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²*

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☐ Yes ☒ No

Please see the answer right below.

- If yes, please provide reference:

At the time of the Swedish ratification of the Convention Swedish law was already to a large extent in line with the Convention. Please also see section 1.1.

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

☒ In higher education

☒ In adult education and alternative learning

- Please indicate the relevant legal provisions:

General provisions

According to the Instrument of Government (Regeringsformen), which forms part of the Swedish Constitution, all public institutions are to combat discrimination on grounds of gender, colour, national or ethnic origin, language, religion, disability, sexual orientation, age or other circumstance affecting the individual. The Discrimination Act (2008:567) (diskrimineringslagen) explicitly bans discrimination in the educational system related to a person's sex, transgender identity or expression, ethnicity, religion or other belief, disability, sexual orientation or age. The prohibition against discrimination also includes a prohibition against discrimination in the form of inadequate accessibility. The

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

Discrimination Act also obliges education providers to work with active measures to prevent discrimination and harassment. This means that schools have a responsibility to apply a four-step approach (investigate, analyse, take measures and monitor/evaluate) to prevent discrimination and harassment (School act chap 6).

There is also a specific requirement that employers and schools should have specific guidelines and routines for their activities to prevent harassment, sexual harassment and reprisals. The Discrimination Act entered into force on 1 January 2009.

Please find below a link to an unofficial translation to English of the Discrimination Act (the translation may not have been updated with recent changes): <https://www.do.se/other-languages/english/discrimination-act/>

The Equality Ombudsman, (Diskrimineringsombudsmannen, DO) monitors compliance with the Discrimination Act. Pursuant to the Act (2008:568) concerning the Equality Ombudsman, DO shall also work to ensure that discrimination associated with any of the discrimination grounds does not occur in any areas of society, provide advice and other support so as to enable anyone who has been subjected to discrimination to claim their rights and, inter alia, inform, educate and discuss with government agencies, enterprises, individuals and organisations.

Primary and secondary education

Degrading treatment of children and pupils is banned in the Education Act (2010:800) (skollagen). The Swedish Schools Inspectorate (Statens skolinnspektion) and a special Child and School Student Representative (Barn- och elevombudet) monitors compliance with the Education Act. The Education Act has been in force since 1 July 2011.

Overall, the Education Act makes clear the importance of human rights as a central part of the school's democratic mandate. It specifies that education must communicate and establish respect for human rights and fundamental democratic values, which Swedish society is based on (Chapter 1, Section 4 of the Education Act). The Education Act also states that education in the Swedish school system shall be designed in accordance with fundamental democratic values and human rights such as the inviolability of human life, the freedom and integrity of the individual, equal rights, equality and solidarity between people. Everyone who attends the school system must promote human rights and actively combat all forms of abusive treatment (Chapter 1, Section 5 of the Education Act). Regarding equal access to education, all children and pupils, regardless of geographic residence and social and economic conditions, are to have the same access to education (Chapter 1, Section 8 of the Education Act). The education in the Swedish school system shall also be equivalent regardless of where in Sweden it takes place.

The National Agency for Education (Statens skolverk), which is the central administrative authority for the public school system, provides support and guidelines, for example regarding value-based work as well as how to prevent degrading treatment in schools.

The law on incorporating the UN Convention on the Rights of the Child (2018:1197) entails an obligation on courts and legal practitioners to consider the rights that follow from this convention in deliberations and assessments that are part of decision-making processes in cases and matters concerning children. The law came into force on 1 January 2020.

Higher education

According to the The Swedish Higher Education Act (1992:1434) chapter 1 section 5, equality between women and men shall always be taken into account and promoted in the operations of higher education institutions.

The Higher Education Act (1992:1434) chapter 4 section 1 states that, in so far as this is possible in compliance with the quality requirement laid down in the first paragraph of Section 4 of Chapter 1, higher education institutions shall admit students who fulfil the entry requirements for their studies. Admission to courses and study programmes at Swedish higher education institutions is regulated in the Higher Education Ordinance (1993:100), chapter 7. Chapter 6, section 3 of the same ordinance also states that higher education institutions must ensure that admission regulations (regulations on applications, entry requirements, selection, and admission) are available, as well as information on how decisions are made and how they can be appealed.

According to the Ordinance (2012:811) with Instruction for the Swedish Council for Higher Education (förrordningen med instruktion för Universitets- och högskolerådet), the Council shall counteract discrimination in higher education and in other ways promote equal rights and opportunities regardless of gender, gender identity or expression, ethnic affiliation, religion or other belief, disability, sexual orientation or age.

Pre-primary, primary and secondary education

The Swedish education system is based on the principle of inclusion. In accordance with the Education Act (2010:80), all children and pupils, regardless of geographic residence and social and economic conditions, are to have the same access to education (Chapter 1, Section 8). Chapter 2, Section 18 of the Instrument of Government (Regeringsformen), states that all children for whom schooling is compulsory are entitled to a free basic education in the public education system. School staff who learn that a pupil feels subjected to degrading treatment are obliged to report it to the head teacher. The head teacher, in turn, is then required to report the matter to the school's principal organiser.

All education regulated by the Education Act must be free of charge and take the perspective of the child as its point of departure.

The Education Act stipulates that children who are asylum seekers have the right to attend preschool, preschool class and compulsory education. From 1 July 2013, the Act also stipulates that children who are staying in Sweden without a legal permit are entitled to education in preschool class and compulsory education.

In accordance with Chapter 7, Section 2 of the Education Act, children who are residents in Sweden have compulsory school attendance in accordance with the regulations in Chapter 7.

Chapter 29, Section 2 of the Education Act states that a resident of Sweden means a person who is or should be registered in the population register in Sweden in accordance with the Population Registration Act (1991:481).

A person who is not registered in Sweden shall also be considered a resident if the person:

1. is covered by section 1, first paragraph or section 1 a, first paragraph of the Act (1994:137) on the reception of asylum seekers and others,
2. stays here with the support of a temporary residence permit according to Chapter 5, Section 15 of the Aliens Act (2005:716),
3. has the right to education or other activities under this Act as a result of EU law, the Agreement on the European Economic Area (EEA) or the Agreement between the European Union and its Member States, of the one part, and Switzerland, of the other, on free movement for persons,
4. is a family member of a person who belongs to a foreign power mission or paid consulate or its service or who is referred to in Section 4 of the Act (1976:661) on Immunity and Privileges in Certain Cases and who is not covered by 3, or
5. stay here without the support of an official decision or constitution.

If a decision on expulsion or deportation has been issued against someone referred to in the second paragraph 1, he or she shall still be considered to be resident in Sweden on that basis until he or she leaves the country. If the person who has been rejected or expelled abstains so that the decision cannot be enforced, the person shall, however, be regarded as resident in Sweden on the grounds specified in the second paragraph 5.

Restrictions on the right to education for those referred to in the second paragraph follow from Section 3.

Chapter 29, Section 3 of the Education Act states that the persons referred to in Section 2, second paragraphs 1 and 2, are entitled to education in upper secondary school and upper secondary school for individuals with learning disabilities only if they have started the education before they have reached the age of 18. They are not entitled to education in municipal adult education.

The persons referred to in Section 2, second paragraph 4, are only entitled to education in pre-school class, compulsory school, compulsory special school, special school and Sami school.

The persons referred to in Section 2, second paragraph 5, are only entitled to education in pre-school class, compulsory school, compulsory special school, special school, Sami school and, if they start education before the age of 18, upper secondary school and upper secondary school for individuals with learning disabilities.

Political goals and national strategies are set to strengthen the activities of the educational sector with regards to equality and equity.

Additional information

Sweden is also party to the UN Convention on the Rights of Persons with Disabilities.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

Please see the answer to the previous question.

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

☒ In higher education

☒ In adult education and alternative learning

- Please provide details:

Pre-primary, primary and secondary education

Offensive treatment, bullying and discrimination must not occur in preschools, schools or other activities subject to the Education Act. The schools must work actively to prevent and remedy violations. The Swedish National Agency for Education provides extensive support and materials for schools to maintain and improve their work on developing a safe and positive school environment for all, including systematic work on combatting racism and other forms of discrimination.

The Swedish National Agency for Education is tasked to develop democracy in and around schools. In 2022 and 2023, the Agency, alongside government agency The Living History Forum, developed a tool for systematic work with democracy-strengthening efforts in the school system, public education and other parts of education for adults. The tool has now been completed and is called the Democracy Ladder - a model for democracy-strengthening development work within the school system and public education. The name aims to signal that systematic and long-term work where everyone takes steps together for increased democratic action is key. The tool is to be used by schools as part of their work with the school's democratic mission. By using the Democracy Ladder, businesses are supported to work systematically with democracy and human rights based on their needs. The Swedish National Agency for Education offers supervision in the schools' work with implementing the tool. The Democracy Ladder is developed based on the Norwegian concept Dembra and the Council of Europe's framework on competences for democratic culture. The model has been developed and tested in close and ongoing contact with professionals in the school system and public education, as well as in consultation with researchers.

The Living History Forum is a government agency that has been assigned with a mission to serve as a national forum for promoting democracy, tolerance and human rights (using the Holocaust as its starting point). The agency has been tasked with a number of inquiries concerning inclusive education. For example:

- An inquiry to gather and map out knowledge about antiziganism in primary and secondary school (Ku2022/00923).
- An inquiry to carry out a research study of Swedish school pupils' attitudes towards intolerance. The task includes investigating school students' attitudes towards vulnerable groups such as immigrants, Jews, Muslims, Roma and LGBTIQ people (A2023/00959).
- An inquiry to strengthen their work in implementing awareness-raising efforts of different forms of racism between 2022 and 2024. The target group is teachers, and the task includes developing support material on Islamophobia and racism against the Sami. The task also includes carrying out continuing education efforts (A2022/00844).

In 2022, the Equality Ombudsman was tasked, in collaboration with the Ombudsman for Children, to carry out special information efforts on where children, students and guardians can turn to when someone has been subjected to discrimination or abusive treatment at school.

In May 2024, the Equality Ombudsman was tasked with a mission to develop and disseminate awareness about Afro-Swedish students' exposure to racism and discrimination in primary and secondary school. The knowledge should be aimed towards e.g., staff and principals in schools.

In June 2023, the Swedish Schools Inspectorate was tasked to examine how schools work with the recent changes in the national curricula in all school forms as for the teaching on sexuality, consent and relationships. The task includes explicitly how schools work on preventing intolerance such as racism and LGBTIQ-phobia. This applies throughout the school system, including adult education.

Higher education

Widening participation: Since 2002, the Higher Education Act (1992:1434) (högskolelagen), the law governing higher education in Sweden, has stipulated that Swedish higher education institutions are to actively promote and widen participation in higher education.

It is up to each higher education institution to interpret and describe what widening participation is and when goals have been achieved.

The Swedish Council for Higher Education shall promote widening participation to higher education.

Between 2019-2022 The Swedish Higher Education Authority (Universitetskanslerämbetet) conducted a thematic evaluation of widening participation, based on a task from the government. This evaluation has given higher education institutions (HEI) the opportunity to analyze and evaluate their work with widening access in order to define their strengths, weaknesses,

opportunities and challenges, and also receive feedback on the work. The report was published in February 2022 and includes several recommendations on how the HEI:s should strengthened their work (Universitets och högskolors arbete med att främja och bredda rekryteringen till högre utbildning Tematisk utvärdering, ref 411-00545-19).

Support for students with disabilities: The Government has allocated national funds for targeted educational support for students with disabilities in the study situation (Stockholms University annual appropriation directive for 2024). Through a national system, students with permanent disabilities can apply for support for studies at Swedish universities and colleges. This support can be, for example, note-taking support, a mentor or adaptation of examinations. The Swedish Council for Higher Education administers the national system. Stockholm University is tasked by the Government to collect information on the higher education institutions' costs for targeted educational support for students with disabilities in the study situation, and also to distribute the national funds allocated for this purpose (Stockholm university annual report 2023, p. 27-28). There is also the possibility for universities and colleges to apply for funds from The National Agency for Special Needs Education and Schools (Specialpedagogiska skolmyndigheten).

Financial support for students: Financial Support for students is intended to make it easier to study and thereby contribute to a high level of participation in education. All domestic students and some categories of foreign students are entitled to student finance, but there are minimum performance requirements, in terms of the number of credits achieved, for continued financial support. Student finance consists of a combination of study grants and study loans at low interest rates (Studiestödsförordning (2000:655), kap 3). Most students in Sweden finance their studies with the help of financial support from the state to cover their living expenses. Some universities offer scholarships or financial aid for students based on academic performance or specific needs or other criteria. Various private foundations and organizations offer scholarships for both Swedish and international students.

☒ Combatting discrimination in terms of curriculum:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

Pre-primary, primary and secondary education

The curriculum for pre-primary and primary school as well as upper secondary education and municipal adult education states that no one should be subjected to discrimination or other degrading treatment on the grounds of gender, ethnic affiliation, religion or other belief system, transgender identity or its expression,

sexual orientation, age or disability. All such tendencies should be actively combated. Xenophobia and intolerance must be confronted with knowledge, open discussion and active measures.

In July 2022, there were changes in the curricula for pre-primary-, primary school as well as corresponding school forms. The changes include, among other things, new writings intended to strengthen the school's work in combating all forms of discrimination, including racism. In the curricula it is stated that all forms of intolerance and oppression, for example racism, sexism and honour-related violence and oppression, must be prevented and responded to with knowledge and active efforts.

According to the Swedish Education Act and Discrimination Act, school staff are obliged to take active measures against all forms of discrimination, violence, and intolerance as for example racism and sexism in school. Please see more information above.

Higher education

Annex 2 (System of Qualifications) of the Higher Education Ordinance (1993:100) details the qualifications that may be awarded in the first, second and third cycles, and the requirements to be fulfilled for the award of each qualification. For all professional degrees leading to teaching qualification, it is stated that the student shall demonstrate the capacity to prevent and restrain discrimination and other forms of harassment of children.

☒ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

Targeted work of the Equality Ombudsman to counter discrimination and inequality in the area of education

- The Swedish Equality Ombudsman is a national government agency that supervises compliance with the Discrimination Act (2008:567).¹⁶
- The Equality Ombudsman has during the period 2021-2023 initiated 530 investigations of complaints concerning discrimination in the field of education.
- The Equality Ombudsman has during the period 2021-2023 claimed compensation in 9 cases of discrimination in the field of education.
- During the autumn 2023 the Equality Ombudsman was contacted by students, parents and civil society organisation about increased harassment in school for students with Jewish, Muslim and Arabic backgrounds due to the conflict between Israel and Palestine. Reports on increased harassment had also been shared by media. In response to this the Equality Ombudsman decided to call the largest Swedish municipal administrations to a meeting in December. The aim is to clarify the schools' obligation to counteract and prevent such harassment.
- In 2023 the Equality Ombudsman also organised a webinar on discrimination and the school's responsibility in this area. Approximately 300 participants from schools from

¹⁶ [Act concerning the Equality Ombudsman | DO](#)

different parts of Sweden and other actors engaging in school issues from civil society and authorities participated.

Please also find examples of policies, programmes and initiatives that aim to prohibit and prevent discrimination and ensure equal access to education in connection to question 1.1.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|--|--|
| ☒ Legislation provides for inclusive education for all | ☒ Multiple and flexible learning pathways ¹⁸ are provided for |
| ☒ Policy measures aim to enhance inclusion in education for all | ☒ Curricula and teaching methods are inclusive in design ¹⁹ |
| ☒ Teachers are trained on inclusive education ¹⁷ and to value diversity | ☒ Multilingual and intercultural education is supported |
| ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Work of the Equality Ombudsman

- In accordance with the Act concerning the Equality Ombudsman (2008:568) the Equality Ombudsman also works to promote equal rights and opportunities regardless of sex, transgender identity or expression, ethnicity, religion or other belief, disability, sexual orientation or age.
- Main focus is to investigate more cases in order to ensure that people who have been subjected to discrimination can obtain redress. Investigations can lead to DO requesting discrimination compensation, entering into settlements or taking proceedings to court.

¹⁷ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁸ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁹ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

- The Equality Ombudsman also educates and engages in dialogues with various stakeholders, follows international developments and interacts with international organisations, follows research and development work and produces various types of reports and support materials such as digital guides and online training tools.

For pre-primary, primary and secondary education, please see the former answers.

Higher education

Please see the previous descriptive answer for policy measures which aim to enhance inclusion in education for all.

Multiple and flexible learning pathways: Compared to the higher education systems of many other countries, the Swedish higher education system is relatively flexible. Educational offerings are largely course-based and most HEIs offer freestanding courses and programmes as distance courses, some of which can be completely online. This offers excellent opportunities for lifelong learning. Traditionally, Swedish higher education does not just involve educating youth after completing secondary education. It also includes continuing development for professionals, and it is common to return to higher education after previous studies.

A new Student Finance Scheme for Transition and Retraining has been introduced from 2023, for people with work experience who need further education or to participate in a completely new education to strengthen their position in the labour market. The new Student Finance Scheme aims to ensure that professionals can participate in education both for up-and reskilling purposes (Lag (2022:856) om omställningsstudiestöd).

If a student does not fulfil the entry requirements through formal qualifications, he or she can apply for an assessment of their prior learning (The Higher Education Ordinance (1993:100), chapter 7, section 5). In their application they describe the skills and competencies that allow them to fulfil the eligibility requirements. The application should be supported by relevant documentation. The university will then assess the application.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

As elaborated on further in the following sections, there are prevailing differences in knowledge results between girls and boys and women and men, between pupils with a foreign background and pupils with a Swedish background as well as between students with different socio-economic backgrounds. Pupils with neuropsychiatric disabilities are also overrepresented in not getting passing grades. There are challenges related to access to quality learning materials for pupils with learning disabilities.

It is also more common for pupils with disabilities to state that they have been exposed to abusive treatment in school. Pupils with disabilities also generally feel more unsafe in school. The same applies to girls and women, LGBTQI-pupils and pupils with a foreign background.

References: Skolverkets lägesbedömning, s. 15, 22 och 31f: [Skolverkets bedömning av läget i skolväsendet 2023 - Skolverket](#)

The Swedish National Council of Adult Education (Folkbildningsrådet) is an NGO tasked with distributing national public grants to study associations and folk high schools (liberal adult education, *folkbildningen*)²⁰. For 2024, the Government allocates appr. 4 billion SEK in grants to liberal adult education via the Swedish National Council of Adult Education. The Government has initiated a gradual adjustment of the state subsidy for study associations, resulting in a reduction of 250 million SEK in the budget for 2024, followed by further reductions of 100 million SEK in 2025 and 150 million SEK in 2026. For 2024, the state subsidy to study associations amounts to appr. 1.7 billion SEK. The state subsidy to folk high schools has been increased by 100 million SEK per year from 2024. For 2024, the state subsidy to folk high schools amounts to appr. 2,4 billion SEK. The study associations and folk high schools have also received several temporary state grants that ended after 2022 (amounting to a total of 572 million SEK in 2022).

The Swedish National Council of Adult Education reports that the reduced resources for study associations and folk high schools have limited the opportunities to create meeting places and learning across Sweden, which hinders the inclusion of people far from normative society – for whom more outreach, trust-building, and motivational work efforts are needed in order to lower thresholds.

Discrimination in the field of education in Sweden

Between 2021-2023 the Equality Ombudsman received 2237 complaints about discrimination in the area of education. The most common discrimination ground among the discrimination complaints in the area of education is disability followed by ethnicity. See the complaints data report for further information: [Statistik 2015–2023: Statistik över anmälningar som inkom till Diskrimineringsombudsmannen 2015–2023 \(do.se\)](#) (only available in Swedish).

According to *The State of discrimination in Sweden report 2023* ([The state of discrimination 2023 | DO](#)), many pupils experience discrimination related to ethnicity or religion during their time at school. The report further shows that people who, based on their appearance, can be assumed to have a certain ethnicity or religion are subjected to harassment, unfounded suspicion, and aggression in various contexts. This may involve people who wear visible signs of a particular ethnicity or religion, such as Roma women and women who wear veils. But it can also involve people who for other reasons are assumed to belong to a certain ethnicity or religion.

According to the same report, *The State of discrimination in Sweden report 2023*, many pupils are subjected to sexual harassment at school.

The report also highlights discrimination against pupils with neurodevelopmental disorders, NDs. A major problem is that pupils do not receive the support and adaptations they need to achieve the learning objectives. Another problem described is that pupils are harassed by school staff or other pupils. The report notes an interplay between harassment related to ethnicity and pupils with NDs not receiving the support to which they are entitled ([The state of discrimination 2023 | DO, page 89](#)).

Other relevant general measures, including gender equality

²⁰ The Swedish National Commission for UNESCO invited civil society organisations to reply to the questionnaire. One civil society organisation replied: the Swedish National Council of Adult Education, who submitted answers to several parts of this questionnaire.

- | | |
|--|--|
| ☒ Legislation provides for gender equality in education
☒ Policy measures aim to enhance gender equality
☒ Gender-responsive education sector planning is undertaken
☐ Providing positive or affirmative action measures
☐ Providing financial incentives and fellowships
☒ Teachers are trained (initial and in-service) on gender equality
☐ Teachers are trained to combat stigmatisation ²¹
☐ Other: | ☒ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education
☒ Re-entry programmes for young mothers are provided for
☒ Ensuring safe and adequate gender-sensitive sanitation facilities ²²
☒ Curricula are rid of all stereotypes ²³ and bias
☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM)
☐ Ensuring gender parity in technical and vocational training education and training (TVET) |
|--|--|

As regards the Instrument of Government (Regeringsformen), which forms part of the Swedish Constitution, and the Discrimination Act (2008:567), please see 1.1 above.

Several of the pre-primary and primary school's courses and subject syllabuses describe how gender equality should be included in teaching, both directly and indirectly. It can, for example, be about sexuality and reproduction or questions about identity, gender equality, relationships, love and responsibility in biology. In August 2018, the Government decided on an ordinance on a revised curriculum for preschools. The new curriculum (Lpfö18) has been prepared by the National Agency for Education and entered into force on 1 July 2019. In 2018, writings on gender equality were strengthened also in the national curricula for the compulsory school forms (July 2022 for upper secondary school, upper secondary school for individuals with learning disabilities, and municipal adult education). The curricula state the school's responsibility to e.g.:

- Promote equal rights and opportunities for students, regardless of gender
- Make visible and counteract gender patterns that limit students' learning, choices and development
- Develop students' understanding of how different ideas about what is feminine, and masculine can affect people's opportunities and their ability to critically examine how gender patterns can limit people's life choices and living conditions.

The Government's memorandum states, among other things, that those who work in preschool must promote the equal value of all people, equality between women and men, girls and boys. No child shall be subjected to discrimination in preschool on the grounds of sex, transgender identity or expression, ethnicity, religion or other belief, disability, sexual orientation or age, in the child or anyone related to the child, or to other abusive treatment. All such tendencies must be actively counteracted. The new curriculum for preschool

²¹ ' Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²² ' Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²³ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

contains, among other things, clearer writings regarding gender equality, integrity and highlights the children's language development.

The overall objective guiding the Swedish gender equality policy clarifies that women and men must have the same power to shape society and their own lives. With this as its starting point, the Government is working towards six sub-goals. One of these goals is gender equal education. The goal states that women and men, girls and boys must have the same opportunities and conditions with regard to education, study options and personal development.

The Government's development programme for gender mainstreaming in government agencies (GMGA) aims to strengthen these agencies' gender mainstreaming to ensure that their activities contribute even more effectively to the achievement of the national gender equality policy objectives. The ultimate aim is to build a gender equal society, with government agencies providing equal conditions and services for everyone, regardless of gender. It is a matter of justice, but also of quality and efficacy of publicly financed activities. GMGA was launched in 2013 and today encompasses 60 government agencies. The Swedish Gender Equality Agency supports these agencies' gender mainstreaming efforts. The Minister for Gender Equality has also regularly hosted meetings where the participating agencies can present their results, share their experiences and discuss challenges associated with GMGA.

STEM

The Swedish government is working on a strategy to strengthen STEM throughout the whole education system, from pre-school to PhD. Sweden needs more students to choose to study within programmes in upper secondary school where they gain both knowledge and interest for further studies in natural sciences and technology. We also need to encourage more women to apply to and graduate from these programmes to ensure that more students complete their studies in engineering programmes in higher education. The strategy will be presented by the end of the year.

"Tekniksprånget" is an internship program in which young people for four months have the opportunity to do a work placement in engineering. Through the investment, the interest among young women and men in engineering education has broadened. The Swedish National Agency for Education's evaluation of the initiative shows that the Technology Leap has been beneficial for the young people who participate in the effort, and especially for women. The government therefore proposes that the investment be strengthened and extended.

Higher education

Parental leave: In the event of pregnancy and parental leave, a student can apply for approved leave from studies and thus keep their study place (The Higher Education Ordinance (1993:100), chapter 7, section 33).

Gender equality: The goal of Sweden's gender equality policy is for women and men to have equal power to shape both society and their own lives. A key objective within this policy focuses on education: achieving gender-equal education. This means that women and men, girls and boys should have the same opportunities and conditions in terms of education, study choices, and personal development.

Under Swedish law, higher education institutions should always promote and take account of gender equality in their activities (The Swedish Higher Education Act (1992:1434), chapter 1, section 5). In addition, the Government has assigned HEIs to work with gender

mainstreaming to contribute to achieving the national targets for gender equality. Gender mainstreaming at Swedish universities involves integrating a gender equality perspective into all levels of university policies, programs, and practices. For Swedish HEI:s the goals are to; counteract gender-based study choices, develop the form and content of teaching, promote gender equal career paths, promote equal allocation of resources and develop evaluation and follow-up.

Sweden's national quality assurance agency, The Swedish Higher Education Authority (Universitetskanslerämbetet), has also been tasked in its government assignment to work with gender mainstreaming at HEI:s (Universitetskanslerämbetet's appropriation directions 2020).

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

In both compulsory school and upper secondary school, the differences in the knowledge results between girls and boys and women and men, respectively, are noticeable, and where girls and women have higher grades and complete their studies to a greater extent than boys and men. There are also clear differences in the results between students with a foreign background and students with a Swedish background and between students with different socio-economic backgrounds. It is a development that emphasizes the importance of the school's compensatory mission.

Several of the school's course and subject syllabuses describe how gender equality should be included in the teaching, both directly and indirectly. It can, for example, be about sexuality and reproduction or questions about identity, gender equality, relationships, love and responsibility in biology. In August 2018, the Government issued an ordinance on a revised curriculum for preschools. The new curriculum (Lpfö18) has been prepared by the National Agency for Education and entered into force on 1 July 2019. The Government's memorandum states, among other things, that those who work in preschool must promote the equal value of all people, equality between women and men, girls and boys. No child shall be subjected to discrimination in preschool on the grounds of sex, transgender identity or expression, ethnicity, religion or other belief, disability, sexual orientation or age, in the child or anyone related to the child, or to other abusive treatment. All such tendencies must be actively counteracted. The new curriculum for preschool contains, among other things, clearer provisions regarding gender equality, integrity and highlights the children's language development.

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

There are still differences in knowledge results between girls and boys and women and men, both in compulsory school and upper secondary school, where girls and women have higher grades and complete their studies to a greater extent than boys and men. There are also differences in the results in international studies, even if they are small and not visible in all subjects.

The difference in the share of pupils that become eligible for a national program in upper secondary school has however decreased over time and is now the lowest it has been since the start of the data series in 1998. The difference was 1,2 percentage points in 2023 (girls 85,8 per cent and boys 84,2 per cent) compared to 2,7 in 2020 (girls 87,0 per cent and boys 84,3 per cent). The share of pupils finishing their upper secondary school degree within the stipulated three years is also generally higher for women than it is for men. For vocational program

generally however, the share is higher for men. There is a clear connection between the gender distribution and the share of women and men finishing with a degree in three years. Pupils of the overrepresented sex in a national program tend to finish their degree in a larger extent. There are clear differences in the gender distribution for almost all national programs in upper secondary school.

Even if most pupils feel safe in schools and don't experience abusive treatment, there are clear differences between girls and boys and women and men. Girls and women in a larger extent state that they are subjected to abusive treatment by other pupils and that they feel unsafe and lonely in school. Girls also to a larger than boys extent state that they feel stressed by schoolwork.

According to the NGO, the Swedish National Council of Adult Education (Folkbildningsrådet), women are overrepresented in liberal adult education provided by study associations and folk high schools. With reduced funds, they report that participation is decreasing – making it more difficult for the study associations to include and reach out to men. As young men – more often than women – increasingly lack trust in democracy and are attracted by misogynistic and nationalist messages, engaging them in democratic learning is vital. In the activities of study associations, men are more often found in cultural activities, especially music activities which are directly affected negatively by the budget cuts with many music centres being at risk of closing down.²⁴ See page 18 for information regarding the conditions for liberal adult education in Sweden.

The *State of Discrimination in Sweden 2023 report* by the Equality Ombudsman highlight that many girls feel sexually harassed at school. In 2023, 12 % of all reported cases of discrimination in the field of education filed to the Equality Ombudsman concerned sexual harassment. The field of education is thus overrepresented when it comes to reports of sexual harassment, which can be compared to 7 % regardless of social area ([Statistik 2015–2023: Statistik över anmälningar som inkom till Diskrimineringsombudsmannen 2015–2023 \(do.se\)](#), figure 15, page 43).

In 2023, the Equality Ombudsman claimed compensation in four cases of sexual harassment in the field of education. Three of these cases took place in school and one in preschool. In all these cases girls were sexually harassed by male teachers. In all of the cases the Equality Ombudsman claimed financial compensation which was paid from the responsible entity to the girls/women exposed to sexual harassment.

The cases investigated by the Equality Ombudsman related to sexual harassment in school are also a way of drawing attention to and point to the fact that schools are responsible for preventing sexual harassment in school. Not fulfilling this responsibility could lead to serious consequences.

- Does the legal minimum age for marriage conform to international standards (18 years) ²⁵:

²⁴ Statistics on participation, including for men and women, can be found in the annual report "Samlad bedömning". It can be downloaded here: www.folkbildningsradet.se/media/d0udge41/folkbildningsradets-samlade-bedomning-folkbildningens-betydelse-for-samhallet-2023.pdf.

²⁵ Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

Anyone under the age of 18 may not enter into a marriage Chapter 2, Section 1 of the Marriage Code (2014: 376) (äktenskapsbalken).

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|---|---|
| ☒ Legislation provides for the right to education of national minorities | ☐ Teachers are trained on intercultural education |
| ☒ Policy measures aim to enhance the right to education of national minorities | ☐ Teachers are trained to combat stigmatisation ²⁷ |
| ☒ Policy elaboration includes consultations with local communities | ☒ Multilingual and intercultural education are supported |
| ☒ The right to carry out their own educational activities is legally guaranteed for national minorities | ☒ Native language instruction is ensured for national minorities |
| ☒ Educational standards are established for educational institutions run by national minorities | ☒ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☐ Positive or affirmative action measures are provided for national minorities | ☒ Curricula are rid of all stereotypes ²⁸ and bias |
| ☐ Financial incentives and fellowships are provided for national minorities | |
| ☐ Other ²⁶ : | |

Teacher shortages and specifically with the subject competence in minority languages of meänkieli, romani chib and jiddisch limit the access for pupils to minority language teaching.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Rights of national minorities

²⁶ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁷ Supra note 15.

²⁸ Supra note 16.

Five national minorities are recognised in Sweden: Jews, Roma, Sami (which is also an indigenous people), Sweden Finns and Tornedalians. Sweden has recognised Finnish, Meänkieli, Romani chib, Sámi, and Yiddish as national minority languages. Specific minority language legislation applies to certain geographical administrative areas for Sami, Finnish and Meänkieli. Under the Act on National Minorities and National Minority Languages (2009:724), individual citizens are entitled to use Sami, Finnish and Meänkieli in their dealings with the authorities and courts of law and in certain geographical areas. Article 10 of the same Act entitles individuals to use Sami, Finnish and Meänkieli for written communication with e.g., the Equality Ombudsman. Parts of the website of the Equality Ombudsman (www.do.se) and the Swedish Schools Inspectorate (www.skolinspektionen.se) are translated to the national minority languages.

Mother tongue tuition and bilingual tuition have an important role to play in supporting and strengthening the minority languages. Pupils in compulsory or upper secondary school can receive mother tongue tuition in a national minority language, provided that there is a suitable teacher available. No other prerequisites apply to pupils belonging to a national minority. Roma children can also receive tuition in two mother tongue languages if they are immigrants to Sweden.

There is also a possibility to arrange classes with bilingual tuition. A municipality or an independent school can arrange bilingual tuition in school years 1–6 for a group of pupils entitled to mother tongue tuition. A maximum of half of the teaching hours may be used for teaching in the mother tongue. Bilingual tuition for Finnish pupils is allowed in years 1–9.

The Language Act (2009:600) stipulates that the national minority languages in Sweden are Finnish, Meänkieli, Romani Chib, Sami, and Yiddish. The public sector has a particular responsibility to protect and promote the national minority languages. The same right applies to Swedish sign language. The Act on National Minorities and Minority Languages (2009:724) (Lagen om nationella minoriteter och minoritetsspråk) entered into force on 1 January 2010.

There is also sectoral legislation that lays down specific rights for the national minorities, including the right to mother tongue tuition in Chapters 10–13, 15 and 18 of the Education Act (2010:800) and the possibility of bilingual teaching (Chapter 9, Sections 12–13 of the School Ordinance [2011:185]). Sami school, years 1–6, gives those pupils who are taught there specific language and cultural education (Chapter 13 of the Education Act).

Preschool and preschool class should contribute to give children the opportunity to develop both the Swedish language and their mother tongue. On 1 January 2019, an amendment to the Education Act (2010:800) entered into force, enhancing the right to preschool education in Finnish, Meänkieli and Sami in municipalities that fall within an administrative area. According to Chapter 8, Section 12b of the Education Act, a home municipality that is within an administrative area under the Act on National Minorities and National Minority Languages must offer children whose parents or guardians so request, a place in a preschool where all or a significant part of the education is conducted respectively in Finnish, Meänkieli or Sami. It also states that parents or guardians applying for a preschool place for their child must be asked whether they wish to have a place in such a preschool.

Changes to the Education Act which entered into force on 1 July 2015 gave pupils who belong to any of the national minorities a stronger right to mother tongue tuition in

their national minority language. In 2014 the National Agency for Education was commissioned by the Government to draw up proposals for specified syllabi content for compulsory school, compulsory school for pupils with learning disabilities, special school and Sami school in the subject mother tongue for the national minority languages Finnish, Romani Chib, Meänkieli and Yiddish – as first and as second languages. The Agency reported back on 8 September 2015 and the syllabi entered into force on 1 July 2016.

According to the Education Act pupils who belong to one of the five national minorities in compulsory and upper secondary school in Sweden are entitled to mother tongue tuition even if the language does not represent the daily means of interaction in the pupil's home.

Pupils in primary-, lower and upper secondary school who belong to one of the national minorities are not required to have any prior knowledge of their national minority language in order for the education provider, the body that runs the school, to be obliged to offer mother tongue tuition. Previously, prior knowledge for students in upper secondary school was mandatory. Students who start upper secondary school as of July 1, 2025, will not need to have any prior knowledge of their minority language.

Mother tongue tuition may also be organized: 1. as a language choice in primary school and special school, 2. within the framework of the school's choice, or 3. outside the guaranteed teaching time.

In the introductory parts of the curriculum, it is stated that the school must be responsible for ensuring that every student, after completing compulsory school, has acquired knowledge of the national minorities' (Jews, Roma, the indigenous Sami people, Swedish Finns and Tornedals) culture, language, religion and history.

The compulsory school curricula have recently been revised and the changes came into effect on 1 July 2022. Through the revision, the teaching about national minorities was concentrated and strengthened to, above all, social studies. The subject of social studies now has the main responsibility for teaching about the indigenous Sami people and the culture, history, rights and situation of the national minorities in Sweden. In this subject, there is now a broader and deeper content about national minorities in both compulsory and upper secondary education, content with a strong connection to human rights.

The government has decided to allocate more time to the socially oriented subjects, where the time is not always enough to cover all the areas that are in the course plans.

According to the curriculum, education in preschool must lay the foundation for the children's understanding of different languages and cultures, including the languages and cultures of the national minorities. Children who belong to the national minorities, which include the indigenous Sami people, must also be supported in their language development in their national minority language and promoted in their development of a cultural identity. The preschool must thereby contribute to protecting and promoting the languages and cultures of the national minorities.

In upper secondary school, which in Sweden includes both higher education preparatory programmes and vocational programmes, prior knowledge to the national minority language is required. However, this requirement will be removed as from 1 July 2025. In both compulsory and upper secondary school, the education provider is

obliged to organise mother tongue tuition in the national minority languages even if only one pupil at the school applies for tuition in the language concerned. However, the requirement that a suitable teacher must be available also applies to the national minority languages.

Upper secondary school pupils, who belong to one of the national minorities are, as mentioned, entitled to teaching in their mother tongue even if the language does not represent the daily means of interaction in the pupil's home. As from 1 July 2025 pupils will no longer need to have good knowledge of the language. Pupils can also study their national minority language – Finnish, Sami, Yiddish, Meänkieli or Romani Chib – as a language option at upper secondary school. Studies can start at a level based on the pupil's existing skills.

Jewish studies

From autumn 2011, organisers of secondary schools are allowed to offer education in Jewish studies. This subject aims to increase opportunities for Jewish pupils to deepen their knowledge about their own culture, history, traditions and religion. As a language choice, pupils are allowed to choose Hebrew and Yiddish.

Higher education

Four higher education institutions are tasked by the government to pursue development work and education and teaching in all national minority languages. The universities are allocated SEK 2.3 million for each language as well as funding for each student. University of Lund is responsible for Yiddish, University of Stockholm is responsible for Finnish and Södertörn University is responsible for Romani Chib. Umeå university has the mission for Sami and Meänkieli. In 2021 the Government decided on changes in the steering of these special assignments. The old assignments focused only on subject teacher training, while the new ones have a broader perspective. The updated assignments state that universities and university colleges should develop education and teaching based on science, including teacher education. The work shall promote teaching on the specific minority language in all school forms (preschool, primary school, upper-secondary school and at university level). These changes aim at increasing the possibilities in national minority language education in dialogue with speakers and in response to the challenges of the individual national languages. In addition to the annual assignments, the same universities and university colleges received a new assignment in 2022. These assignments aim at strengthening and developing the already existing measures to revitalise national minority languages.

Policy measures

The Swedish school system rests on the foundation of democracy. The school system has an important role in conveying and anchoring respect for human rights, and the government continues its work with democracy-strengthening measures and measures to counter intolerance, oppression and violence. The government has decided on various democracy-strengthening initiatives and measures with the aim of countering racism.

The Swedish National Agency for Education has been tasked in 2024 and 2025 to, together with the Living History Forum, further develop and follow up a tool for systematic work with democracy-strengthening efforts in the school system, public education and in other parts of adult education. The purpose is to counter antisemitism and other forms of racism.

The Government has recently increased its funding to the University of Gothenburg which, via the Segerstedt Institute, spreads knowledge of working methods to combat antisemitism for actors who play an important role in combating antisemitism among children and young people, such as teachers and head teachers.

The Government has commissioned the Swedish National Agency for Education to carry out a national study on antisemitism with the aim of investigating children's, pupils' and staff's experiences of contemporary antisemitic expressions, incidents and attitudes in the school system 2024-2025. The assignment also includes to describe how the school system works to counter antisemitism.

The National Agency for Education offers via its website updated support in teaching about national minorities and support in the work against racism, intolerance and standing up for the equal value of all people. The Swedish National Agency for Education provides, among other things, material that gives teachers support in being able to handle controversial issues in the classroom. There is also support in how the school can work with active measures and to investigate whether there are risks of discrimination, harassment or sexual harassment in its own activities.

The NGO, the Swedish National Council of Adult Education, points out that the tool "the Democracy Ladder", described in section 1.1, continues to also include study associations. Several folk high schools have tested the tool, which helps to make the work systematic, to identify the school's specific challenges, and to create a work plan. The work engages the entire school, from management to participants, and focuses on everything from strengthening critical thinking to democratic working methods – and counteracting discrimination.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

The minority policy aims to provide protection for the national minorities and to strengthen their opportunities for influence, as well as to support the national minority languages so that they are kept alive. Challenges related to this is to see to it that the national minority language teaching is available and of good quality.

The Swedish National Agency for Education has produced a competence development model, a module, with research-based didactic support material for teachers of mother tongue. It aims to increase teachers' teaching skills by providing them with new knowledge, insights and tools.

In order to increase the availability of qualified teachers, the Swedish National Agency for Education has been offering distance learning for Sámi teachers at Sámi allaskuvla in Norway since autumn 2018. The education consists of four university courses of 7.5 university credits in Sami and is conducted at quarter speed.

The NGO, Swedish National Council of Adult Education, reports that one of their study associations with Muslim orientation faces growing anti-Muslim opinions and increased mistrust which could have a negative impact on their operations.

www.folkbildningsradet.se/om-folkbildningsradet/publikationer-och-remissvar/rapporter/rapporter-2019/nar-tilliten-provas.

There are also further details on the situation for Muslim civil society in the report "Kartläggning av hot och hat mot det civila samhället" (Mapping threats and hatred against Civil Society) from MUCF. : [Kartläggning av hot och hat mot det civila samhället | MUCF](#)

Indigenous people:

- | | |
|---|---|
| ☒ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☒ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☒ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁹ |
| ☒ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☒ Multilingual and intercultural education are supported |
| ☒ Educational standards are established for educational institutions run by indigenous people | ☒ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☒ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☒ Curricula are rid of all stereotypes ³⁰ and bias |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Sámi schools

The aim of Sámi schools is to offer Sámi children a Sámi education where they learn about Sámi culture, history and traditions, as well as the Sámi language. Education in Sámi schools corresponds to education up to year 6 of compulsory Swedish school. The Sámi Education Board (Sameskolstyrelsen) is a government agency, and therefore the State is the responsible authority for Sámi schools. Pupils often continue their education in years 7–9 of compulsory school in a municipal school with integrated Sámi education.

The Sámi Education Board was established in 1981 by decision of the Riksdag. The Sámi Parliament appoints chairs and members of the Board and the Director of Schools. The Board has a secretariat located in Jokkmokk that is led by the Director of Schools. In addition to education, the Sámi Education Board also promotes the development and production of teaching materials for Sámi teaching. The Board also assists municipalities with outreach activities among the Sámi and provides information about Sámi schools and Sámi teaching in the municipal school system.

Activities are regulated by the Education Act. The Sámi Education Board may also carry out the municipality's duties in preschools for Sámi children by agreement with the municipality.

There are five Sámi schools, all located in municipalities in the administrative area of protecting and promoting the Sámi languages in correspondence to the Minority Language Act. Teaching in Sámi schools is conducted in three variants of the Sámi language, Lule Sámi, Northern Sámi and Southern Sámi, as both a first and a second

²⁹ Supra note 15.

³⁰ Supra note 16.

language, and in Swedish, as both a first and a second language. There are preschools and out-of-school centres at all Sámi schools.

Integrated sámi education

The education act (Chapter 10 §7a) states that a principal of a compulsory school may organize Sámi education in their primary school for students who may fulfill part of their compulsory schooling in the Sami school, if the principal and the Sami School Board enter into an agreement to that effect. Sami teaching refers to teaching with Sami elements and teaching in Sami in addition to the teaching organized as mother tongue teaching in Sami.

The education for the students referred to in chapter 10 §7a must be integrated with the corresponding education for other students in primary school. Sami teaching may be scheduled outside of the guaranteed teaching time.

The education act also states that students who have a language other than Swedish as their daily language of communication with one or both guardians, parts of the teaching in grades 1–6 may be organized in this language. For students with Finnish as a social language, such teaching may also be organized in grades 7–9.

During the total time that the student receives bilingual education, no more than half of the education may be given in the language of communication. Teaching must be planned so that teaching in Swedish gradually increases.

Ordinance (2020:824) on trial activities with bilingual teaching in primary schools states that a primary school principal may organize trial activities in accordance with this regulation. For students who have a language other than Swedish as their daily language of communication with one or both guardians, parts of the teaching in grades 7–9 may be organized in the language of communication (bilingual teaching).

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

As the regulations are structured today, it is required that a teacher meets the requirements to obtain an authorization to teach a subject in primary school in order to obtain authorization to teach the corresponding subject and grades in the Sami school. To get one authorization to teach a subject in the Sami school therefore requires that the subject is in compulsory school. The subject of Sami is not in primary school and the Swedish National Agency for Education can therefore not legitimize and give authorization to teach the subject of Sami in the Sami school. This has been investigated and elucidated, among other things, in the ministry memorandum "Authority in the subject Sami and certain curriculum changes for increased security and study peace" U2020/00232/S.

The NGO, Swedish National Council of Adult Education expresses concern that decreasing funds will jeopardize ongoing and effective initiatives. The Government has tasked the Swedish National Council of Adult Education to allocate funds for liberal adult education to revitalise national minority languages, including Sami languages. During the first half of 2022, 7.5 million SEK were available for distribution, followed by 9.5 million SEK per year in 2023 and 2024. Of the 29 projects funded in 2023, 16 included activities to strengthen Sami languages. However, 2024 is the final year these funds will be allocated. See page 18 for information regarding the conditions for liberal adult education in Sweden.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations³¹:

- | | |
|---|--|
| ☒ Legislation provides for their right to education | ☒ Financial incentives and fellowships are provided for |
| ☐ Policy measures aim to enhance their right to education | ☐ Auxiliary assistance is provided |
| ☒ Inclusion in mainstream schools is ensured | ☒ Multiple and flexible learning pathways ³⁴ are provided |
| ☐ Positive or affirmative action measures are provided for | ☒ Curricula are rid of all stereotypes ³⁵ and bias |
| ☒ All administrative barriers to access education are removed | ☐ Accelerated learning programmes are provided |
| ☒ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers ³² are provided for | ☒ Non-formal and/or alternative education programmes are provided |
| ☒ Teachers are specifically trained to ensure their inclusion | ☒ Language classes to newcomers are provided for |
| ☒ Teachers are trained to combat stigmatisation ³³ | ☒ Multilingualism and intercultural education are encouraged |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Chapter 29, Section 2 and 3 of the Education Act (2010:800) stipulates that children who are asylum seekers have the right to attend preschool, preschool class, compulsory education and upper secondary school if started before the year of 18. From 1 July 2013, the Act also stipulates that children who are staying in Sweden without a legal permit are entitled to education in preschool class, compulsory education and upper secondary school if started before the year of 18.

Swedish tuition for immigrants' forms part of the public adult education system in Sweden. The purpose of the scheme is to provide learners with basic Swedish language skills. It also aims to give adult immigrants who cannot read or write a chance to acquire these skills. Immigrants must be given the opportunity to develop their ability to communicate in Swedish – orally and in writing – in everyday situations, social settings and working life. Swedish for immigrants must also prepare learners for further studies.

³¹ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

³² While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³³ Supra note 15.

³⁴ Supra note 13

³⁵ Supra note 16.

Municipalities are required to offer Swedish language instruction to all adult immigrants who lack basic Swedish language skills. Instruction should normally begin within three months of registration of residence in the municipality. Depending on the learner's educational background and previous knowledge, she or he is placed in one of three differently paced study tracks, with the right to progress to course D in study track 3, regardless of which track she or he started in.

On behalf of the Government, the National Agency for Education implements initiatives to strengthen the quality of education for children and students who are new arrivals or have a mother tongue other than Swedish (U2019 / 03787 / S). The assignment includes school forms from preschool to adult education.

The Government has appointed an inquiry chair to review the subject of Swedish as a second language. The inquiry chair is to propose curriculum changes in a way that the subject better meets the needs of both students who lack basic knowledge of Swedish language and students who have progressed further in their second language development.

The Government has assigned the Swedish National Agency for Education with conducting a national study on antisemitism in the school system. The aim of the study is to investigate children's, pupils' and staff's experiences of contemporary antisemitic expressions, incidents and attitudes in the school system and to report on how the school system works to counteract this. Furthermore, the National Agency for Education is tasked with promoting the development of more effective work for integration and reduced exclusion and democracy-strengthening efforts to counter antisemitism and other forms of racism.

Higher education

Entry requirements for higher education in Sweden are regulated in Chapter 7 of the Higher Education Ordinance (1993:100). There is no specific regulation regarding students in the mentioned group and assessment of their eligibility for admission to higher education.

Higher education in Sweden is free from tuitions fees for Swedish citizens, citizens in the EU/EES and Switzerland. Incoming students from other countries have to pay an application fee and tuition fees for first and second-cycle studies. However, certain categories are exempt from tuition fees, for example students taking part in an exchange programme and students with a residence permit in Sweden for other reasons than study. (Ordinance on application fees and tuition fees at higher education institutions (2010:543) (förrordningen om anmälningsavgift och studieavgift vid universitet och högskolor). See also chapter 2.3 below.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☒ No

- Please elaborate:

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- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

Compulsory education

Proposition 2014/15:45 Education for newly arriving students – reception and schooling.

A formal definition of ‘new arrival’ was proposed to be made legally active in the Education Act: a new arrival is one who has started their education after the autumn term of their seventh birthday; a student is no longer considered a new arrival four years after starting their education in Sweden. Additional proposals were made concerning new arrival’s integration into the school system: new arrivals were expected to be evaluated and given an appropriate placement and study plan (in correspondence to their abilities, educational background etc.) within two months of arrival. New arrivals with especially weak skills were recommended to be placed in preparatory schooling until the student be deemed adequately prepared for ‘regular’ schooling or had been in preparatory schooling for two years, whichever occurred first. The proposition was ratified January 2016.

Upper secondary school

The secondary school's national program is open to young people who live in Sweden and have completed their primary school education or equivalent education. Young people who are not eligible for national programmes in upper secondary school can go to introductory programmes in upper secondary school. One of the introduction programs, language introduction, is particularly aimed at newly arrived young people.

Higher education

Refugees who have arrived in Sweden will have their application for asylum assessed by the Swedish Migration board. As this process may take time, it may take a long time before they receive a residence permit. During the application period they are generally required to pay tuition fees for higher education studies. This may deter them from pursuing higher education.

People who have fled war zones for example may not have access to documentation regarding their qualifications. This makes it very difficult for them to apply to universities in Sweden as eligibility requirements are generally assessed based on previous qualifications, such as upper secondary school grades and previous university studies. Universities have the right to make exemptions regarding an applicant’s eligibility, but it will generally be difficult for a person without documentation to prove that they have the necessary qualifications. The Swedish Council for Higher Education (UHR), which is the government authority responsible for the assessment of foreign qualifications, has developed a website that can show what a specific qualification in one country is equal to in Sweden. However, it is up to the university to which a person has applied to decide on whether to admit a person based on solely the description of a qualification that the person claims to have.

Other

The NGO, the Swedish National Council of Adult Education, expresses concern about the reduction of government grants for courses for newly arrivals and asylum seekers. The grants were allocated to study associations and folk high schools for special liberal adult education initiatives directed towards asylum seekers, certain newly arrived immigrants, and refugees under the mass protection directive within the concept “Swedish from day one”. The purpose of the initiative was to provide meaningful activities and accelerate future integration by strengthen the knowledge of the Swedish language and understanding of Swedish society, as well as promote participation in work and community life. Between 2022 and 2023, the grants

were reduced from around 139 million to 29 million SEK. No new grants have been announced for 2024 for this purpose (Folkbildning med asylsökande 2023 (folkbildningsradet.se). See page 18 for information regarding the conditions for liberal adult education in Sweden.

People with disabilities:

- | | |
|---|--|
| ☒ Legislation provides for their right to education | ☒ Mainstream teachers are specifically trained on disabilities |
| ☒ Policy measures aim to enhance their right to education | ☐ Teachers are trained to combat stigmatisation ³⁶ |
| ☒ Inclusion in mainstream schools is ensured | ☒ Auxiliary assistance is provided |
| ☐ Special schools are used as resource centers to inclusive schools | ☒ Curricula and teaching and learning methods are adapted |
| ☐ Positive or affirmative action measures are provided | ☒ Curricula are rid of all stereotypes ³⁷ and bias |
| ☒ Financial incentives and fellowships are provided | ☐ Education infrastructure and learning materials are adapted |
| ☐ Other | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Swedish school system is based on the idea of inclusion. The current government has strengthened its investments in support measures for pupils with special needs, including children with disabilities, with state grants to increase the number of special needs teachers and special educational support measures. In 2023, the Government decided on investments for these purposes with 600 million SEK, 900 million SEK in 2024. The government estimates 1 billion SEK in 2025. Over the last years the number of graduated special needs teachers have increased. To support the recruitment of student health service personnel, the government invests 150 million SEK every year.

In 2023, the Government tasked the National Agency for Education and the National Agency for Special Needs Education and Schools to strengthen their support for pupils with neurodevelopmental disorders, by providing teacher training activities. The agencies, together with researchers, have developed training materials for this purpose.

Since 2016 *the National Agency for Education together with the National Agency for Special Needs Education and Schools* has carried out teacher training to improve the special educational competence in education. The training material has been continuously expanded and improved. Since the start of the program 52000 participants, mostly teachers, but also preschool teachers and staff, have completed this ongoing training.

The Government has decided on a state grant of 7,5 billion SEK for 2024, with the aim of supporting schools to improve the equivalence and the knowledge outcomes in education.

³⁶ Supra note 15.

³⁷ Supra note 16.

This investment can be used by school organiser to recruit special needs teachers and student health personnel.

In 2024, the Government appointed an inquiry, tasked to submit proposals on how to improve and strengthen student health services and support measures in education. This remit includes proposals on student health service personnel competence and access to student health services. The remit also includes proposals on improved cooperation between school, healthcare and social services. The inquiry is due to submit a report in 2025.

The government has also taken steps to adjust the curricula to pupils 'cognitive preconditions, by appointing an inquiry. A government official report is to be submitted in 2025.

The school organiser (municipality or private) is responsible of the support for pupils with disabilities. Pupils with deaf-blindness, hearing impairment/deafness, or visual impairment/blindness in combination with another disability, and pupils with severe speech impairment have the right to attend compulsory special needs schools, which is a state-run school form. In 2022/23, 784 pupils attended this school form.

In accordance with Chapter 1, Section 8 of the Education Act, all children and pupils, regardless of geographic residence and social and economic conditions, are to have the same access to education. Upper secondary education (including the introductory programmes) as well as upper secondary schools for individuals with intellectual disabilities are free of charge. Pupils shall have free access to books and other learning tools needed for a modern education. Fees in connection with the application for a place shall not be charged (Chapter 15, Section 17 and Chapter 18, Section 17 of the Education Act). Furthermore, Chapter 18, Section 30 states that pupils in upper secondary schools for individuals with intellectual disabilities, with a public responsible authority, have the right to free school transport within the home municipality from a place adjacent to the pupil's home to the place where the education is conducted and back, if such transport is needed with regard to route length, traffic conditions, student disability or any other special circumstance.

Chapter 29, Section 3 of the Education Act states that the persons referred to in Section 2, second paragraphs 1 and 2, are entitled to education in secondary school and secondary school for children with learning disabilities only if they have started the education before they have reached the age of 18. They are not entitled to education in municipal adult education.

The persons referred to in Section 2, second paragraph 4, are only entitled to education in pre-school class, compulsory school, compulsory special school, special school and Sami school.

The persons referred to in Section 2, second paragraph 5, are only entitled to education in pre-school class, compulsory school, compulsory special school, special school, Sami school and, if they start education before the age of 18, upper secondary school and upper secondary school for children with learning disabilities.

Upper secondary education consists of both preparatory programmes for higher education and vocational programmes. There are also introductory programmes for those pupils who are not eligible for a national program in upper secondary school. There are also upper secondary schools for individuals with intellectual disabilities. There, the different study programmes are mainly focused on professional preparation. Most young persons with functional impairment of different kinds attend ordinary upper secondary school, but there are also four special national upper secondary schools in different parts of Sweden

for students with severe physical disabilities. Here, students are guaranteed personal care, boarding houses, treatment and training.

The National Agency for Special Needs Education and Schools, SPSM, ensures that children, young people and adults – regardless of functional ability – have adequate conditions to fulfil their educational goals. This is done through special needs support, education in special needs schools, accessible teaching materials and government funding.

Education for adults with intellectual impairment

Education for adults with intellectual impairment is another part of the public adult education system. This scheme, which is divided into basic adult education and upper secondary level education, is intended for adults with intellectual impairment or acquired brain injury.

Higher Education

The Government has allocated national funds for targeted educational support for students with disabilities in the study situation (Stockholm university annual report 2023, p 27-28). Through a national system, students with permanent disabilities can apply for support for studies at Swedish universities and colleges. This support can be, for example, note-taking support, a mentor or adaptation of examinations. The Swedish Council for Higher Education administers the national system. Stockholm University is tasked by the government to collect information on the higher education institutions' costs for targeted educational support for students with disabilities in the study situation, and also to distribute the national funds allocated for this purpose. There is also the possibility for universities and colleges to apply for funds from The National Agency for Special Needs Education and Schools, SPSM.

Folkbildning

Folkbildning is a form of non-formal learning and an umbrella term for a variety of educational formats conducted at folk high schools and study associations. Study associations and folk high schools are a vital part of Swedish democracy and the educational framework. Currently, there are 9 study associations and 155 folk high schools in Sweden that are all eligible for state funding. The study associations offer activities in all 290 Swedish municipalities. The folk high schools currently offer long courses (two or more weeks) in 151 municipalities.

The general classes at folk high schools are designed for students with incomplete primary or secondary education. Some of the classes are especially aimed for example for students with disabilities or other mother tongues than Swedish. In the general classes on secondary education level 45 % of the participants had a disability (2023).

Sweden is also party to the UN Convention on the Rights of Persons with Disabilities.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Due to regulatory matters it is difficult to have statistics regarding children, pupils and adults with disabilities.

In order to design interventions to support children and pupils with disabilities in the school system, we need better and systematically collected data. In particular, we need to be able to follow developments over time and have better means of accessing children's/ custodians' experiences of the child's situation in school. Pupils with disabilities experience more school

stress and bullying than children without disabilities. This is stated in the Public Health Agency's report "Children with disabilities - living conditions, lifestyle and health". In the past five years, the Equality Ombudsman (DO) has received an average of approximately 270 notifications per year about discrimination related to disability in the field of education. Pupils with disabilities have a greater risk of extensive school absences than other pupils. The School Inspectorate writes in a quality review that in the reporting cases concerning extensive absences, attention is drawn to a certain overrepresentation of pupils with neurodevelopmental disorders.

In Compulsory school for pupils with Intellectual Disabilities only 9.8 % of the teachers have the correct teaching credentials in the schoolyear of 2023/24. Furthermore, there is an increase of pupils in compulsory schools for pupils with intellectual disabilities. Since 2018/19 there has been an increase from 1% to 1,4% of the total part of pupils in the compulsory school that receive their teaching according to curriculum for the compulsory school for pupils with intellectual disabilities.

One significant challenge is the weak connection between upper secondary school for pupils with intellectual disabilities and working life. There is a low employment rate for pupils with intellectual disabilities (12 %). Schools face considerable difficulties in organizing internships (workplace-based learning), leading many pupils to become unemployed after completing their education. Additionally, many more pupils would be employable if they had received the right support. Instead they end up in daily activities programs organized by municipalities (51 %).

Due to reduced government grants, the NGO Swedish National Council of Adult Education, notes that folk high schools struggle with maintaining quality activities aimed at participants who may need extra resources such as individuals with neuropsychiatric disorders, NDs, participants with intellectual disabilities, multiple disabilities, or those who need personal support even after the school day has ended (for participants studying at boarding schools). For these groups the folk high schools are an important alternative and complement to the regular school system and participation in folk high schools is increasingly popular among individuals with neuropsychiatric disorders, NDs.

The conditions for state grants to liberal adult education require work on accessibility and special support for people with disabilities. The state grant systems are designed to support such work. Surveys show that the majority of people with disabilities find the activities accessible to them. There are certain study associations and folk high schools that are particularly good at accommodating participants with disabilities. Liberal adult education offers a wide range of activities that support democratic participation, provide community and personal development, and strengthen self-determination and independence. This also involves offering adapted activities to succeed in gaining eligibility for higher studies, or activities that enable rehabilitation and reorientation after an injury or illness, such as aphasia (www.folkbildningsradet.se/media/d0udge41/folkbildningsradets-samlade-bedomning-folkbildningens-betydelse-for-samhallet-2023.pdf). See page 18 for information regarding the conditions for liberal adult education in Sweden.

Notes from the two governmental agencies the Swedish Equality Ombudsman (DO) and the Swedish Agency for Participation (MFD):

It is significantly more common that people with disabilities have a pre-secondary education as their highest completed education compared to the general population. In 2022, 13 % in the age group 30 and older had a pre-upper secondary education as the highest completed education, which can be compared to 24 % in the same age group with disabilities

(Uppföljning av funktionshinderspolitiken 2023 (mfd.se), page 33 and Statistiska Centralbyrån (2023), Undersökningarna av levnadsförhållanden (ULF) 2022).

People with disabilities are also over-represented to not complete upper secondary education, 11 % compared to 4 % in the population at large (Uppföljning av funktionshinderspolitiken 2023 (mfd.se), page 33-34 and Statistiska Centralbyrån (2023), Undersökningarna av levnadsförhållanden (ULF) 2022).

59 % of the 856 complaints about discrimination in the area of education received in 2023 concerned disability. The number of complaints have increased from around 300 in 2021 to about 500 in 2023 ([Statistik 2015–2023: Statistik över anmälningar som inkom till Diskrimineringsombudsmannen 2015–2023 \(do.se\)](#), figure 15, page 43, figure 16, page 44).

Students with disabilities generally feel worse at school, run a higher risk of being bullied and report psychological problems to a greater extent. Especially boys with disability report poorer well-being at school and more illegitimate absenteeism than girls with disabilities. A particularly vulnerable group in this context are children with neuropsychiatric impairments who have an increased risk of mental illness during school, and they are overrepresented among students who do not receive passing grades ([Uppföljning av funktionshinderspolitiken 2023 \(mfd.se\)](#)).

A large proportion of complaints about discrimination related to disability concern pupils with neurodevelopmental disorders (NDs) who experience discrimination ([The state of discrimination 2023 \(do.se\)](#)).

In complaints filed with DO, in DO's supervisory work, and in dialogue with civil society organisations, it has emerged that many schools are failing to meet the need for extra adaptation or special support to pupils with neurodevelopmental disorders, NDs, which they are entitled to according to the Education Act. The consequence is that they are given poorer conditions for achieving the school's learning objectives and receiving a proper schooling. If the school does not ensure that pupils' needs for extra adaptation and special support are met, pupils may be discriminated against in the form of inadequate accessibility. During the period 2021-2023 the Equality Ombudsman claimed compensation in five cases of discrimination in education related to disability ([The state of discrimination 2023 | DO](#)).

For example, in 2023 the Equality Ombudsman filed a claim for compensation on half a million Swedish krona (approximately 44 000 euros) for a case concerning discrimination from second grade to eight grade of a pupil with ND, since the pupil's right to education was not met in most of his primary education due to the school had not fulfilled its responsibility.

Investigations into special support for students take too long, and it can take a long time before the support measures are put in place. Many students do not receive support to that extent either which they would need, which for many students means they do not reach the knowledge requirements in school ([Uppföljning av funktionshinderspolitiken 2023 \(mfd.se\)](#)).

The *State of Discrimination in Sweden 2023 report* published by the Equality Ombudsman ([The state of discrimination 2023 | DO](#)) includes an in-depth chapter on discrimination related to pupils with NDs in school. A couple of highlights from this chapter as follows:

- Some pupils with NDs describe that the school's interaction with and treatment of them differs from that experienced by other pupils for reasons that may be related to disability. This may involve teachers restraining a pupil or taking disciplinary action because the pupil is considered to be disruptive, for example by putting a pupil in the

hallway to let out “excess energy”. It may also involve a pupil being excluded from education or instruction on the basis of circumstances related to the pupil’s disability. For example, complaints filed with DO reveal how pupils with NDs are not allowed to go on school trips or take part in physical education lessons, or how pupils in compulsory school for pupils with learning disabilities are not allowed or not able to take part in school parties. There are also examples of pupils with certain NDs being automatically referred to special classes or groups or being taught in separate classrooms. Complaints filed with DO also describe pupils with NDs being harassed by school staff or other pupils.

- Complaints of discrimination and DO’s dialogue with civil society show that pupils with NDs are sometimes not accepted to be enrolled in schools because of their disability. There are also cases where pupils with NDs have been treated differently when applying to a particular school. This may involve a school telling a pupil or the pupil’s guardian that the school already has a certain number of pupils with NDs and that the school does not have the capacity to accept additional pupils with NDs.

Students from poor households:

- | | |
|---|---|
| ☐ Financial incentives and fellowships for school enrolment are provided | ☐ Teachers are trained to combat stigmatisation ³⁸ |
| ☒ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education | ☒ Curricula are rid of all stereotypes ³⁹ and bias |
| ☐ Positive or affirmative action measures are provided | |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Compulsory school

Regarding students from poor households in Sweden the education act as well as the syllabus in general emphasizes equity and equality as core values. In Sweden educational equity means that teaching shall be adapted to the circumstances and needs of each pupil. It shall promote pupils continued learning and knowledge development regardless of their socio- economic background and based on previous experiences, language, and knowledge. The Education Act stipulates that education in each type of school and in school-age education must be of equal quality, regardless of where in the country it is provided.

Educational equity does however not mean that education should be the same everywhere or that school resources should be allocated equally. The different circumstances and needs of the pupils must be considered. Each school has a special responsibility for pupils

³⁸ Supra note 15.
³⁹ Supra note 16.

who, for various reasons, have difficulties achieving the objectives of their education. This could for example pertain to those children who are from less advantaged backgrounds. Thus, teaching can never be structured in the same way for everyone. Schools must actively and consciously promote the equal rights and opportunities of pupils, regardless of gender affiliation.

Recent initiatives in Sweden that at least indirectly targets students from poor households include Proposition 2021/22:132 Pre-school for more children.

The proposition's main stipulation is that every municipality be liable to actively search households whose children are not currently in pre-school and offer them a place. This proposition mentions explicitly that children of foreign backgrounds and especially those that have been in Sweden for a shorter time (as well as parents) would most benefit from greater and earlier participation in the pre-school system; additionally, the proposal seeks to function as a targeted measure to decrease the gap in language competencies from an early age. This proposition was ratified in June 2022.

Another initiative that indirectly targets students from poor households is the state grant for better working environment and working conditions for teachers in socio-economically vulnerable areas 2023/24.

The state grant must go to certain school principals for measures to improve the working environment and improved working conditions for teachers in school units with preschool classes or elementary schools with socio-economic challenges.

Student fees

Education in the compulsory school forms and upper secondary school in Sweden must be free of charge. The students must have free access to books and other learning tools needed for an up-to-date education. Learning tools refer to the equipment and materials, in addition to books, that students need to be able to achieve the goals of the education. Such learning tools can also refer to alternative tools for learning, for example speech synthesis.

If a student receives distance learning as special support, the student must have free access to the technical equipment needed for this. That the education in the compulsory forms of school must be free of charge also means that the pupils must be offered nutritious school meals free of charge. This also applies if students receive distance learning as special support. If students receive distance learning as special support, according to the preparatory work, they can, for example, receive an offer of meal vouchers or the opportunity to collect meals in a nearby school in their home municipality.

Despite the fact that the education must be free of charge, there may be occasional elements that may entail an insignificant cost for the students. It could be, for example, a ticket for traveling by public transport or an entrance fee to a museum. However, even small amounts may be in breach of the school's exemption from fees if they recur on repeated occasions. It is the principal of the school who is responsible for the education being free of charge.

Fees may not be charged in connection with the application for a place in the pre-school class, primary school, adapted primary school, Sami school or special school. It is also not permitted to charge a fee for children and students to queue for a specific school.

Adult education within the school system is also free of charge. On the other hand, students themselves have to bear the cost of learning materials.

Higher education

See answer 1.1. (Financial Support for students). Most students in Sweden finance their studies with the help of financial support from the state to cover their living expenses.

Some universities offer scholarships or financial aid for students based on academic performance or specific needs or other criteria. Various private foundations and organizations offer scholarships for both Swedish and international students.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

The results from Pisa 2022 reaffirmed that overall pupils from socio-economically disadvantaged backgrounds tends to perform on average lower when it comes to reading, mathematics and science. The education act clearly spells out that schools have a responsibility to compensate for pupils' backgrounds, but it is also clear that at least on an aggregated national level that goal has not been reached. Several initiatives have been taken to address the issue of pupils from socio-economically disadvantaged backgrounds over the years. Some key initiatives include the state grant for equity, cooperation for the best possible schools as well as some more recent initiatives to introduce school during holidays, improved working conditions for teachers in socioeconomically disadvantaged areas as well as a public enquiry into minimum school resource allocations. Having said that, it is still important to note that Pisa also tells us that in both Sweden and on average across the OECD class sizes are smaller and teacher density is higher at schools where the socio-economic composition is less favorable compared to schools there the composition is more favorable. The NGO, Swedish National Council of Adult Education, reports that folk high schools and study associations offer activities in all municipalities, reaching people from all walks of life. However, with reduced funding it will become increasingly difficult to maintain affordable or free activities across the country (www.folkbildningsradet.se/media/d0udge41/folkbildningsradets-samlade-bedomning-folkbildningens-betydelse-for-samhallet-2023.pdf, page 44-49, appendix Study associations: tables S3A-S3D, Folk high schools: tables F3A-F3D). See page 18 for information regarding the conditions for liberal adult education in Sweden.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁴⁰ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and

⁴⁰ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

Education⁴¹. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked):

- | | |
|--|---|
| ☐ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☒ Prior to pre-primary education, ECCE services are affordable | |
| ☒ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

In accordance with Chapter 7, Sections 4 and 10 of the Education Act (2010:800), the compulsory attendance at school shall begin to be fulfilled in the preschool class in the autumn semester of the calendar year in which the child reaches the age of six. Chapter 9, Section 3 of the Education Act (2010:800) states that the education in preschool class shall be conducted during one school year, which consists of an autumn semester and a spring semester.

Children in Sweden have the right to accessible and affordable Early Childhood Education and Care (ECCE) of high quality in which care, development and learning form a whole. From the age of one year, children in Sweden are offered preschool to the extent necessary with regard to the parents’ work or studies or if the child has a personal need because of the family's situation in general. Children of unemployed persons or persons on parental leave are offered preschool activities for a minimum of 3 hours per day or 15 hours per week. At the age of six, children enter the compulsory preschool class. The attendance in preschool is very high. About 85% of children in the age group one to five years old, and about 95% of children in the age group four to five years old attend preschool.

- ☒ Pre-primary education is **not** compulsory.

- ☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

In accordance with Chapter 9, Section 8 of Education Act (2010:800), the education in pre-school (class) shall be free of charge. Pupils must have free access to books and other teaching tools needed for a timely education and be offered nutritious school meals. Fees in connection with the application for a place may not be charged. For information about duration, see above question concerning duration.

⁴¹ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

There is a maximum fee for ECCE services. This means that a ceiling is set on the fees payable by parents for their children. The fee charged may be no more than between one and three percent of the family's income, depending on how many children the family has. There is also an absolute cap of approximately 1,600 Swedish kronor (145 EUR) per child and month. The fees account for about 7 % of the total costs for preschool. Each municipality must ensure that children are offered preschool and must ensure that the education meets the requirements set in the preschool's regulations. Preschool can be offered through independent education providers. Municipalities must distribute funds to the independent education providers on the same grounds that apply when allocating resources to their own preschools. Municipalities must also inspect the independent preschools and make sure that they meet the requirements.

☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The Discrimination Act is applicable also in pre-schools.

The Education Act and the curriculum serves as steering acts for the pre-school.

The Education Act regulates, among other things, the rights and obligations of children and their guardians. The curriculum describes the preschool's core values, what the children will be exposed to during their time in the preschool, and the responsibilities of the principal and the preschool teachers. The education in preschool must lay the foundation for lifelong learning. It should be fun, safe and educational for all children who participate. The education must be based on a holistic view of the children and their needs, where care, development and learning form a whole.

The pre-school has its own chapter in the Education Act, chapter 8. In accordance with chapter 8, Section 15 of the Education Act (2010:800), a child shall be offered a place at a preschool unit as close to the child's own home as possible. Reasonable consideration must be given to the wishes of the child's guardian.

The quality of Swedish pre-schools must be documented continuously and systematically, followed up, evaluated and developed. The purpose of the evaluation is to gain knowledge about how the preschool's quality, i.e. how the organisation, content and execution of the activities can be developed so that each child gets the best possible conditions to develop and learn.

The Swedish preschool has dual functions. It enables parents to combine parenthood with work or studies and it support and encourage children's development and learning. The preschool plays an important role both in the education system and for the labour market, not least when it comes to gender equality.

Over the past decades, Swedish preschool has been incorporated as an important part of the education system. In 1996 the preschool came under the auspices of the Ministry of Education. In 1998 the first preschool curriculum was introduced. It has been revised several times since then.

The curriculum is a binding ordinance and applies to both municipal and independent preschools. It is an important aspect of quality and covers the activities and teaching directed in the preschool. However, it allows preschool principals and teachers to choose

the methods by which the main goals can be strived for. It is meant to steer and point out what children should be offered in the preschool, but it does not set up goals for the individual child's learning.

The curriculum is based on fundamental values, tasks of preschools and on the foundations for lifelong learning. It incorporates some of the fundamental characteristics of Swedish preschool – the child as an active, competent and exploring being, project and theme oriented working approaches, and the democratic perspective on the child's acquisition of knowledge and learning.

Policy examples:

In order for more children to attend preschool, the Swedish government has developed new regulations that requires municipalities to contact guardians with children who do not attend preschool and inform them about the benefits of preschool and the right to attend.

Municipalities must also provide a reserved preschool place for children who need language development activities, for example children who have lived in Sweden for a short time.

The government has also established a new state subsidy for the purchase of fiction and non-fiction books. In total, preschools and schools have the opportunity to receive SEK 176 million SEK, which corresponds to approximately 1.2 million new books. The application period is 1 October to 1 November 2024. During 2024, the state grant can be used for preschool, preschool class and primary school. From 2025, it will also be possible to apply for state grants for middle school, junior high school and upper secondary school.

In 2023, the Government appointed an inquiry that will present proposals on how the admission requirements for teacher and preschool teacher training can be raised, how subject teacher training can be strengthened and how the training can have an increased focus on subject knowledge, cognitive science and practical methodology. The inquiry is to present their proposals no later than 29th November 2024.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|---|---|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low number of professionally trained educators |
| ☐ Poor quality programmes | ☐ Lack of support to families |
| ☐ Other: | |

Due to the COVID-pandemic, some children were deemed to have been affected negatively in their language development in preschool and thus were less well prepared for primary school. Most significantly children from households where Swedish isn't the language of interaction.

- Please elaborate. Brief quantitative information may be added.

Insufficient number of professionally trained preschool teachers is still a challenge for providing high quality preschool in Sweden. On a national level just over 40 per cent of the personnel in preschool have a teaching degree. This also varies between different municipalities, from between 20 to 70 per cent.

Most children attend preschool in Sweden, 96 per cent of four- to five-year-olds attend preschool. However, enrolment is lower among children with migrant or less favourable socio-economic background.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

6 (pre-primary, which is part of compulsory education). Children are 7 years of age when they start primary school.

- Is primary education compulsory and free of charge?

- ☒ Primary education is compulsory
- ☐ Primary education is **not** compulsory.
- ☒ Primary education is free of charge.
- ☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Primary school: For children years 1-6

In accordance with Chapter 7, Section 4 of the Education Act (2010:800), the compulsory attendance at school shall begin to be fulfilled in the preschool class. Thereafter, the compulsory school attendance shall be fulfilled in the compulsory school or in the school form where the child is received in accordance with section 5, 6 or 7, unless the compulsory school attendance is fulfilled in some other way in accordance with the provisions of Chapter 24. Chapter 7, Section 10 (2010:800) states that the compulsory school attendance begins the autumn semester the calendar year when the pupil turns six and the compulsory school attendance ceases at the end of the spring semester of the tenth year.

In accordance with the Education Act (2010: 800), the education in compulsory school, compulsory school for children with intellectual disabilities, special school and Sami school must be free of charge.

Chapter 10, Section 10 (2010:800) states that the education in compulsory school shall be free of charge. Pupils must have free access to books and other teaching tools needed for a timely education and be offered nutritious school meals. Fees in connection with the application for a place may not be charged.

According to Chapter 10, Section 32, a pupil in compulsory class with a public responsible authority is entitled to free school transport from a place adjacent to the pupil's home to the place where the education is conducted and back, if such a move is necessary in view of the length of the route, traffic conditions, the pupil's disability or any other special circumstance.

- What challenges were encountered in realizing primary education?

- | | |
|--|---|
| ☐ Limited access | ☒ Poor learning outcomes in: |
| ☒ Issues of equity and inclusion | Foundation literacy |
| ☐ High dropout rates | Numeracy |
| ☐ Poor quality programmes | Social and emotional learning |
| ☐ Other: | Others |
| | ☒ Disparity in learning outcomes |
| | ☒ Low number of professionally trained teachers |

There are still large differences in the share of pupils that complete primary school qualified for a national program in upper secondary school. Pupils with migrant background or whose parents only have shorter education background become qualified in a lesser extent.

A general shortage of qualified teachers in primary school is still a challenge. 71 per cent of teachers in primary school have a teacher certification with the relevant qualifications for teaching in at least one of their subjects. In primary school for children with learning disabilities the share is only 12 per cent. Qualified teachers also to a lesser extent teach in schools where pupils have less favourable background.

The results for Swedish pupils have declined in the latest international studies (PISA & PIRLS) when it comes to literacy and numeracy. The results of the low-performing pupils have declined, while the results for high-performing pupils have remained relatively unchanged. The difference between pupils with different socio-economic background has increased, as well as between pupils from households where Swedish is or isn't the language of interaction.

- Please elaborate. Brief quantitative information may be added.

--

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

13

- Please provide the age of enrolment and duration of upper secondary education:

Upper secondary school is open to young people who have completed their primary school education and who are starting their upper secondary education during the period up to and including the first calendar semester of the year they turn 20. The national programmes are intended to be completed in three academic years. The upper secondary school for individuals with learning disabilities is intended to be completed over four academic years.

- Is lower and upper secondary education compulsory and free of charge?

- ☒ Lower secondary education is compulsory.
- ☐ Lower secondary education is **not** compulsory.
- ☒ Lower secondary education is free of charge.
- ☐ Lower secondary education is **not** free of charge.
- ☐ Upper secondary education is compulsory.
- ☒ Upper secondary education is **not** compulsory.
- ☒ Upper secondary education is free of charge
- ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Lower secondary: For children school years 7-9 (please see previous answer related to "primary education", lower secondary is part of compulsory school).

Upper secondary: For children school years 10-12.

Chapter 15 Section 17 § and Chapter 18 Section 17 Education Act: Education in upper secondary school must be free of charge. The students must have free access to textbooks, other learning materials and other learning tools that are needed for good knowledge development in accordance with the goals of the education. The principal may, however, decide that the students must stick with individual aids of their own. Fees in connection with the application for a place may not be charged. However, there may be individual elements that may entail an insignificant cost for the students. Chapter 18 Section 30:

Pupils in a public upper secondary school for individuals with learning disabilities have the right to a free transport from home to school.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes o No o

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

- What challenges were encountered in realizing secondary education?

- | | |
|--|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☒ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

There is a disparity in learning outcomes in upper secondary school. The share of pupils finishing their upper secondary school degree within the stipulated three years has continued to increase over time (79,7 per cent in 2023, 78,3 per cent in 2020). However, pupils with a migrant background or whose parents have a shorter education background to a lesser extent finish their degree within three years. They also get lower average grades.

There is a general shortage of qualified teachers in secondary school. Even though the share of teachers with a teacher certification and the relevant qualifications for teaching in at least one of their subjects is higher than in primary school (83 per cent compared to 71). In secondary school for children with learning disabilities the share is only 17 per cent.

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁴², and target 4.4⁴³. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☒ Higher education is free of charge
- ☐ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☒ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

Regarding tuition fees, please see answer 2.1 (People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations). General entry requirements for first- and second-cycle studies normally include a degree from a university preparatory upper-secondary programme. But there are several other roads into higher education in Sweden. Upper-secondary vocational degrees can also provide qualification in some circumstances, and there are good options for meeting entry requirements through studies in municipal adult education for upper-secondary qualifications. Prior learning can also meet basic entry requirements if the person is judged to be able to benefit from the education (The Higher Education Ordinance (1993:100), chapter 7.

Regarding financial support please see answer 1.1. (Financial Support for students).

Higher education is accessible through credit transfer system between states: Sweden is part of the European Credit Transfer and Accumulation System (ECTS). The ECTS is a standardized system used across Europe to facilitate the recognition of

⁴² Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴³ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

academic qualifications and periods of study. This system allows students to earn and transfer credits between institutions within Sweden and other participating European countries. This system supports student mobility and ensures that periods of study abroad are recognized by home institutions. For students participating in exchange programs such as Erasmus, a Learning Agreement is used to ensure that the credits earned abroad will be recognized by the home institution. This credit transfer system is an integral part of the Bologna Process, which aims to create a more coherent and compatible European Higher Education Area (EHEA).

See answer 1.2: Multiple and flexible learning pathways.

- What challenges were encountered in realizing higher education?

- | | |
|--|---|
| ☐ Limited access | ☐ Low number of professionally trained professors |
| ☒ Issues of equity and inclusion | ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☐ Poor quality programmes | |
| ☐ Poor learning outcomes | |
| ☐ Other: | |

Higher education

Higher education is generally free, and Sweden has a very generous student finance system. There are HEIs in most parts of the country and also a large offering of distance study courses and programmes. The possibilities to study in higher education in Sweden should therefore be considered good. However, statistics show that certain groups in society are underrepresented in higher education. This is especially evident when analysing the educational background of parents, where children to parents with a low level of education are less likely to commence higher education.

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☒ Provision of free of charge career guidance and counselling
- ☐ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|---|
| ☒ Limited access | ☐ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☒ Other: | |

It may, for some, be a financial issue and for others that the education is not available in the locality. But above all, there are too few applicants for many courses.

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that

are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☒ State monitoring and inspections
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees (if relevant)
- ☐ Other

--

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

Compulsory school

According to the Education Act (2010:800), all pupils should be given the guidance and encouragement they need in their learning and in their personal development process. The guidance and encouragement should be based on the pupil's personal capabilities for them to develop as much as possible according to the educational goals. See more information regarding the curriculum above.

Sweden's education system is highly decentralised, however it is steered by goals and learning outcomes defined at the central level. The government has the overall responsibility and sets the framework for education at all levels, but it's the municipalities that are responsible for organising most of the education.

Parallel to the municipal schools, Sweden also has a system of grant-aided independent schools. That is, both municipal and independent schools at the compulsory level are grant-aided and free of charge.

It is the municipality's job to allocate resources to approved grant-aided independent schools for the children that participate in its' activities.

The Swedish Schools Inspectorate monitors the quality of the education and makes sure that regulations are followed.

In short, the state governs education through a series of statutes, government orders, curricula and syllabuses. These contain aims and guidelines for all aspects of education, and everyone working in the school system, whether it is public or independent, is obliged

to work towards common goals and objectives, thereby guaranteeing education of uniform value.

Due to the nature of our decentralised system, education providers have great responsibility in organising their work to achieve the goals set up by the government and the Swedish Riksdag.

Higher education

The requirements for higher education in Sweden are set out in the Higher Education Act (1992:1434). Regarding private organisations, see further information in section 3.4.

- What challenges were encountered in realizing quality education?

- | | |
|---|---|
| ☐ Non-supportive or inadequate learning environments | ☐ Low quality educational infrastructure and materials |
| ☐ Violence in schools | ☐ Inadequate parental support to education |
| ☐ Cost of education | ☐ Long distances to schools |
| ☐ Conflicts or crises | |
| ☐ Other: | |

There is a disparity in the capacity, preconditions and resources for municipalities and independent education providers in providing quality education. This means that all children and pupils aren't provided with an education of high and equal quality. There are differences in the share of qualified teachers in schools as well as access to learning materials of high quality. Distractions and noise in the study environment is also a challenge in many schools in Sweden.

- Please elaborate. Brief quantitative information may be added.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.

- ☒ Minimum standards and qualifications required for the teaching profession.
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☒ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☐ Establishment of performance monitoring systems.
- ☐ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

The Swedish education system is highly decentralized. Therefore, local education providers hold the main responsibility for the health and conditions of their teaching staff. These conditions are usually established through negotiations between teachers' unions and the employer or the employer's organisation.

- What challenges were encountered in the education personnel?

- | | |
|---|---|
| ☒ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☒ Lack of qualified, trained and motivated teaching staff | ☒ High student – teacher ratio |
| ☐ Lack of training centres | |
| ☐ Other: | |

There is a general shortage of qualified teachers and preschool teachers in Sweden. The shortage is most obvious in schools for children with learning disabilities. There is also a disparity between schools in rural and urban areas as well as between different schools. Qualified teachers to a lesser extent teach in schools where pupils have less favourable background and where they perhaps are most needed.

- Please elaborate. Brief quantitative information may be added.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴⁴ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- ☒ Curriculum includes human rights education.
- ☒ Educational and/or extracurricular activities are organized on human rights education.
- ☐ Other:

- Please elaborate on each of the measures taken:

Compulsory school and upper secondary school

The curricula for compulsory school (Lgr22) states that education within the Swedish school system aims to enable pupils to acquire and develop knowledge and values. It shall promote development and learning for all pupils and a lifelong desire to learn. Education shall communicate and instil respect for human rights and the fundamental democratic values on which Swedish society is based. Each person actively involved in the school system shall also encourage respect for the intrinsic value of every human being and respect for the environment we all share. The sanctity of human life, the freedom and integrity of the individual, the equal value of all people, equality between women and men and solidarity between people are the values that schools shall embody and impart. Human rights education is also present in the syllabuses in civics, geography and religion. All in all, human rights are mentioned 18 times in the curriculum. Corresponding regulation is found in the curriculum for upper secondary school.

Higher Education

The ability to make assessments or interventions including a human rights-based approach is specifically mentioned in a number of degree objectives (Annex 2 to the Higher Education Ordinance), including teacher degrees, social work and degrees in the healthcare areas.

The Government has given Uppsala University an assignment (U2023/03659) to manage and develop a web-based introduction to human rights. The assignment includes training efforts on human rights for personnel in a selection of government authorities and affected personnel in municipalities and regions. The assignment includes educational initiatives on the rights of the child.

⁴⁴ Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴⁵.

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴⁶ explicitly apply to non-state educational institutions. Please specify:

The Discrimination Act (2008:567) (diskrimineringslagen), which bans discrimination in the educational system related to a person's sex, transgender identity or expression, ethnicity, religion or other belief, disability, sexual orientation or age is also applicable to non-state educational providers.

The Swedish National Council of Adult Education

The NGO, Swedish National Council of Adult Education, points out that the mission of folk high schools is covered by anti-discrimination legislation. The Swedish National Council of Adult Education also applies conditions for state grants to protect and strengthen respect for human rights and fundamental democratic values. The purpose of the state grant is, among other things, to strengthen and develop democracy. The traditional working methods of liberal adult education are based on inclusion, meetings, democratic dialogue, and the individual's voluntary participation, where the participant is seen as a resource and practices listening to and respecting others, among other things. The Swedish National Council of Adult Education also requires that folk high schools have student participation in school decisions and participants can report if the folk high schools fail in their commitments to the participant. If an institution breaches conditions concerning democracy, such as through discrimination, The Swedish National Council of Adult Education can demand corrective measures and withhold or reclaim funds. The Swedish National Council of Adult Education reports that the recently advertised large cuts in government funding and grants making the future unsure for many folk high schools and other (non-profit) study associations that provide liberal adult education. See page 18 for information regarding the conditions for liberal adult education in Sweden.

☒ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

The Discrimination Act (2008:567) (diskrimineringslagen), which bans discrimination in the educational system related to a person's sex, transgender identity or expression, ethnicity, religion or other belief, disability, sexual orientation or age is also applicable to non-state educational providers.

⁴⁵ Private, faith-based, NGOs, community actors.

⁴⁶ See: Article/Paragraph 1(1).

- ☐ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

Not relevant

- ☒ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ☒ Registration
- ☒ State monitoring and inspections
- ☒ Qualifications of teachers
- ☐ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☒ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees
- ☐ School closures
- ☐ Other

- [Please elaborate:](#)

Pre-primary, primary, secondary school and upper secondary school

Parallel to the municipal schools, Sweden also has a system of grant-aided independent schools. Both municipal and independent schools at the compulsory level and upper secondary level are grant-aided and free of charge. It is the municipality's job to allocate resources to approved grant-aided independent schools for the children that participate in its' activities. The Swedish Schools Inspectorate monitors the quality of the education and makes sure that regulations are followed. That is, the state governs education through a series of statutes, government orders, curricula and syllabuses. These contain aims and guidelines for all aspects of education, and everyone working in the school system, whether it is public or independent, is obliged to work towards common goals and objectives, thereby guaranteeing education of uniform value. Due to the nature of Sweden's decentralised system, education providers have great responsibility in organising their work to achieve the goals set up by the government and the Swedish Riksdag. Independent schools follow the same Education Act and curricula as municipal schools, are tax-funded with school vouchers, and are not allowed to charge fees.

Qualifications of teachers: Teachers in compulsory and upper secondary school must have a teaching license to be permanently employed and be allowed to grade. Preschool teachers must have a preschool teacher's license to be permanently

employed. In order to be allowed to teach, both identification and authorization are usually required.

Higher education

Private organisations, in Swedish legislation called 'independent education providers, can only issue qualifications regulated in the Higher Education Ordinance (1993:100) after permission from the government. This is regulated in the Act concerning authority to award certain qualifications (1993:792). In it is stated that programmes of study offered by independent education providers must fulfil the general requirements for qualifications set out in the Higher Education Act, which form the basis for curricula in higher education in Sweden. Independent education providers are also obliged to take part in the monitoring and evaluation of courses and programmes, and they are required to produce an annual report on quality.

- What challenges were encountered in non-state education provision?

- | | |
|---|---|
| ☐ Low quality educational infrastructure and materials | ☐ Issues in terms of equity and inclusion |
| ☐ Low number of professionally trained teachers | ☐ Weak government regulatory and monitoring capacity |
| ☐ High student – teacher ratio | |
| ☐ Other: | |

The NGO, Swedish National Council of Adult Education, reports that a new regulatory condition on democracy will be introduced on 1 January 2025, which will impose additional requirements to not act against democratic values, such as through discrimination. The Swedish National Council of Adult Education is undertaking efforts to ensure the implementation of this for folk high schools and study associations, so that they know how to act if something occurs www.regeringen.se/rattsliga-dokument/proposition/2024/04/prop-202324119/.

- Please elaborate. Brief quantitative information may be added.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁷.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

- ☒ Digital technology use in education is provided for in the legal framework.

⁴⁷

Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

Please indicate the relevant text and provisions:

Compulsory school, upper secondary school and municipal adult education

The Education Act (chapter 1, para. 3) states that textbook is defined as printed learning materials, with or without digital components; learning materials is defined as complete or partly printed or digital book which is intended for use in teaching, which is consistent with relevant parts of the curriculum, and which is published by someone engaged in publishing activities of a professional nature; learning tool is defined as textbooks, other teaching aids and other printed or digital works as well as equipment and materials used in teaching.

The Education Act (chapter 9, para 8, chapter 10 para 10, chapter 11 para 13, chapter 12 para 10, chapter 13 para 10) states that students must have free access to textbooks, other learning materials and other learning tools that are needed for good knowledge development in accordance with the goals of the education. As an objective, schools are responsible for ensuring that, after completing compulsory school, every pupil can use both digital and other tools and media for knowledge seeking, information processing, problem solving, creation, communication and learning.

When it comes to upper secondary school, the Education Act (chapter 15 para 17 and chapter 18 para 17) states that students must have free access to textbooks, other learning materials and other learning tools that are needed for good knowledge development in accordance with the goals of the education. However, the principal may decide that the students must pay for individual tools.

For municipal adult education, the Education Act (chapter 20 paragraphs 7, 7a and 7 b) states that students must have free access to textbooks, other learning materials and other learning tools that are needed for good knowledge development in accordance with the goals of the education. However, the principal may decide that learning tools that each student has for their own use and may keep as their property must be acquired by the students themselves or offered for fees that at most correspond to the principal's acquisition costs. When it comes to education in Swedish for immigrants, the Education Act states that students must have free access to textbooks, other learning materials and other learning tools that are needed for good knowledge development in accordance with the goal of the education. However, the principal may decide that the students must pay for individual learning tools of their own.

The use of digital tools is also present throughout the compulsory school curricula, the upper secondary school curricula and the municipal adult education curricula.

Everyone working in the schools shall in activities involving norms and values, pay attention to both opportunities and risks associated with increasing digitalisation.

Teachers shall organize and carry out the work so that the pupil can use digital tools in a way that promotes knowledge development. However, the government has given the Swedish National Agency for Education (Skolverket) the task of drawing up general advice and recommendations regarding the choice of learning tools. The idea is that analogue learning tools should be used in the lower grades and that digital learning tools, with increasing age, can be used to a greater extent and produce good effects (U2022/03951, U2023/03229, prop. 2023/24:21 page 31).

Higher education

Annex 2 (System of Qualifications) of the Higher Education Ordinance (1993:100) details the qualifications that may be awarded in the first, second and third cycles, and the requirements to be fulfilled for the award of each qualification. For all professional degrees leading to teaching qualification, it is stated that the student shall demonstrate the capacity to use digital aids assuredly and critically in educational processes and to take into account the significance of the role of different media and digital environments in this respect and demonstrate the capacity to acquire during educational processes skills that are valuable for professional practice.

- ☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)
- ☐ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.
- ☐ Measures to remove barriers to accessing digital content⁴⁸, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.
- ☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.
- ☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education
- ☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.
- ☒ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

Measures to remove barriers to accessing digital content, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

Authorities have a requirement to be accessible for all, including the offering of accessible websites. Ordinance (2001:526) on the responsibility of the state authorities for the implementation of the disability policy states that government authorities must take the disability policy goals into account while designing and conducting their activities. The authorities must also work to ensure that people with disabilities are given full participation in social life and equality in living conditions. The authorities must work, in

⁴⁸ Lack of internet connection, basic infrastructure or devices.

particular, to ensure that their premises, activities and information are accessible to people with disabilities. In this work, the Convention on the Rights of Persons with Disabilities shall serve as a guide.

Please also see references to the discrimination act above.

Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

Yes, the use of digital tools is present throughout the compulsory school curricula. Please find some examples above.

Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders

REGULATION (EU) 2016/679 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (GDPR) is applicable to educational providers. Necessary supplements and adaptation due to the regulation have been made in Swedish law, through the Act containing supplementary provisions to the EU General Data Protection Regulation (2018:218) (dataskyddslagen) and several laws regarding educational providers.

Digital skills incorporated into pre- and in-service teacher etc.

Higher education

Annex 2 (System of Qualifications) of the Higher Education Ordinance (1993:100) details the qualifications that may be awarded in the first, second and third cycles, and the requirements to be fulfilled for the award of each qualification. For all professional degrees leading to teaching qualification, it is stated that the student shall demonstrate the capacity to use digital aids assuredly and critically in educational processes and to take into account the significance of the role of different media and digital environments in this respect and demonstrate the capacity to acquire during educational processes skills that are valuable for professional practice.

Future-ready skills etc.

Higher education

Annex 2 of the Higher Education Ordinance (1993:100) details the general requirements for degrees in higher education. Developing programmes and curricula that will attain those goals are within the responsibilities of each university. In in annex 2, many qualifications contain requirements regarding the ability to critically interpret information, and to identify and formulate issues critically.

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|--|---|
| ☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☐ Limited access to internet and/or electricity |
| | ☐ Limited access to hardware (devices, chargers, etc.) |

- | | |
|---|---|
| ☐ Lack of equity and inclusion in digital learning solutions | ☐ Difficulty in regulating the use of digital education solutions |
| ☐ inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☐ Difficulty in sustainably financing digital education solutions at national scale |
| ☐ Other: | ☐ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☐ Disjointed or fragmented solutions that are not centrally systematized or regulated |

Access to digital devices and tools is generally sufficient in schools in Sweden. Most teachers use digital devices in their tutoring but two out of ten experiences at least every week that they do not have access to relevant programs or applications. More than half of the principals and teachers state that there is a large need for in service training concerning the use of digital devices and in digital competences.

- Please elaborate. Brief quantitative information may be added.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

- ☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.
- ☒ Monitoring results are made public. [Please provide the link:](#)

Higher education

[Högskolekollen - Universitetskanslersämbetet \(uka.se\)](https://uka.se/hogskolekollen)

- ☒ Monitoring processes are participatory, inclusive and regular.
- ☒ Sector-wide and multisector approach is adopted to education governance.
- ☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

- ☒ The decision-making process for the allocation of resources to education is transparent.
- ☐ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- ☐ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

Higher education

Funding for higher education is proposed to Parliament by the government in the yearly budget bill. The bill includes details regarding education and research funding for each higher education institution for the coming year. The Parliament will then decide on the bill.

Quality assurance and compliance in higher education is performed by the Swedish Higher Education Authority (UKÄ), an independent government authority. UKÄ evaluates the quality of higher education and research, is responsible for official statistics and monitors compliance with laws and regulations among Swedish higher education institutions. UKÄ is a member of The European Association for Quality Assurance in Higher Education (ENQA) and is registered with the European Quality Assurance Register for Higher Education (EQAR) as a quality assurance agency compliant with the European Standards and Guidelines for Quality Assurance (ESG). UKÄ's quality assurance processes are cyclical and involve higher education institution personnel, students, as well as industry partners.

- What challenges were encountered in terms of governance?

- | | |
|--|---|
| ☐ Budgetary constraints | ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment |
| ☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels | ☐ Lack or weakness of monitoring systems – including the lack of reliable data |
| ☐ Poor dialogue with teachers' trade unions | |
| ☒ Other: | |

The responsibility for the provision of education lies with the municipalities and independent education providers. As stated, there is a disparity in the capacity, preconditions, and resources in providing quality education. An increased responsibility for the provision of education and allocation of resources from the state level might be needed if a more equitable education of high quality for all children and pupils is to be achieved.

Higher education

Most higher education in Sweden is performed by public higher education institutions. But non-public higher education institutions which are officially recognised must also follow national regulations and the regulations issued by the Government in connection with the public funding that many of them receive. In higher education governance there is therefore a continuing

discussion regarding the complexities of balancing governance with the higher education institutions' academic freedom and institutional autonomy.

- Please elaborate. Brief quantitative information may be added.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

The Swedish National Commission for UNESCO invited civil society organisations to reply to the questionnaire. National authorities were also consulted.